



Policy certificate

Insurance effected through the Coverholder:

CFC Underwriting Limited

PLEASE NOTE – This notice contains important information. PLEASE READ CAREFULLY.

This Certificate is issued by the Coverholder in accordance with the authorization granted to the Coverholder under the Binding Authority Agreement with the Unique Market Reference stated within this Policy. This Policy comprises a Certificate, the Declarations page, Wording and all other provisions and conditions attached and any endorsements issued.

The liability of an insurer under this contract is several and not joint with other insurers party to this contract. An insurer is liable only for the proportion of liability it has underwritten. An insurer is not jointly liable for the proportion of liability underwritten by any other insurer. Nor is an insurer otherwise responsible for any liability of any other insurer that may underwrite this contract.

The proportion of liability under this contract underwritten by an insurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown in this Policy.

In the case of a Lloyd's syndicate, each member of the syndicate (rather than the syndicate itself) is an insurer. Each member has underwritten a proportion of the total shown for the syndicate (that total itself being the total of the proportions underwritten by all the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members. A member is liable only for that member's proportion. A member is not jointly liable for any other member's proportion. Nor is any member otherwise responsible for any liability of any other insurer that may underwrite this contract. The business address of each member is Lloyd's, One Lime Street, London EC3M 7HA. The identity of each member of a Lloyd's syndicate and their respective proportion may be obtained by writing to Market Services, Lloyd's, at the above address.

Although reference is made at various points in this clause to "this contract" in the singular, where the circumstances so require this should be read as a reference to contracts in the plural.

In Witness whereof this Certificate has been signed by:

A handwritten signature in black ink, appearing to read 'ARH', followed by a wavy line.

Authorized Official

Please examine this document carefully. If it does not meet your needs, please contact your broker immediately. In all communications the policy number appearing overleaf should be quoted.



DECLARATIONS

POLICY NUMBER:	PSO0140671916
UNIQUE MARKET REFERENCES:	B087525C9N5051 B087525C9N5053
THE INSURED:	Florida Agricultural Engineering Inc
ADDRESS:	1015 Atlantic Boulevard Ste 174 Atlantic Beach, FL 32233 US
THE UNDERWRITERS:	Underwritten by certain underwriters at Lloyd's and other insurers, led as stated in the Lead Insurer Information page
THE INCEPTION DATE:	00:01 Local Standard Time on 29 Jan 2026
THE EXPIRY DATE:	00:01 Local Standard Time on 29 Jan 2027
TOTAL PAYABLE:	USD3,075.00
Broken down as follows:	
Premium:	USD2,795.00
Policy Administration Fee:	USD280.00
BUSINESS ACTIVITIES:	Agency Construction Manager
CHOICE OF LAW:	Florida
SERVICE OF SUIT:	Mendes & Mount LLP 750 7th Avenue New York, NY 10019
LEGAL ACTION:	Worldwide
TERRITORIAL SCOPE:	Worldwide
US CLASSIFICATION:	Surplus Lines
SURPLUS LINES BROKER:	RT Specialty, LLC Licence No. : A009843 150 S US Highway 1, Suite 3 Jupiter 33477
RETROACTIVE DATE(S):	
Professional Liability:	29 Jan 2025
General Liability:	29 Jan 2025, in respect of INSURING CLAUSE 5 (SECTION F only)
OPTIONAL EXTENDED REPORTING PERIOD:	12 months for 100% of applicable annualized premium
CLAIMS MANAGER:	CFC Underwriting Limited Please report all new claims to: newclaims@cfc.com
WORDING:	Architects & Engineers v5.0



ENDORSEMENTS:

Complaints Notice (USA)
Known Matters Exclusion Clause
U.S. Terrorism Risk Insurance Act of 2002 As Amended
Not Purchased Clause

DECLARATIONS

INSURING CLAUSE 1: PROFESSIONAL LIABILITY

ALL SECTIONS COMBINED

Aggregate limit of liability: USD1,000,000 in the aggregate

SECTION A: ERRORS AND OMISSIONS

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD2,500 each and every claim, including **costs and expenses**

SECTION B: BREACH OF CONTRACT

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD2,500 each and every claim, including **costs and expenses**

SECTION C: SUB-CONTRACTOR VICARIOUS LIABILITY

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD2,500 each and every claim, including **costs and expenses**

SECTION D: CONTINGENT BODILY INJURY AND PROPERTY DAMAGE LIABILITY

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD2,500 each and every claim, including **costs and expenses**

SECTION E: INTELLECTUAL PROPERTY RIGHTS INFRINGEMENT

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD2,500 each and every claim, including **costs and expenses**

SECTION F: POLLUTION LIABILITY

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD2,500 each and every claim, including **costs and expenses**

SECTION G: REGULATORY COSTS AND FINES

Limit of liability: USD1,000,000 each and every claim, including **costs and expenses**

Deductible: USD2,500 each and every claim, including **costs and expenses**



SECTION H: DISHONESTY OF EMPLOYEES

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD2,500	each and every claim, including costs and expenses

SECTION I: PAYMENT OF WITHHELD FEES

Limit of liability:	USD1,000,000	each and every claim
Deductible:	USD2,500	each and every claim, including costs and expenses

INSURING CLAUSE 2: CYBER AND PRIVACY

NO COVER GIVEN

INSURING CLAUSE 3: CYBER CRIME

NO COVER GIVEN

INSURING CLAUSE 4: CYBER EXTORTION

NO COVER GIVEN

INSURING CLAUSE 5: COMMERCIAL GENERAL LIABILITY

ALL SECTIONS COMBINED

Aggregate limit of liability:	USD2,000,000	in the aggregate
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SECTION A: BODILY INJURY AND PROPERTY DAMAGE LIABILITY

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD1,000	each and every claim, including costs and expenses

SECTION B: PERSONAL AND ADVERTISING INJURY

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD1,000	each and every claim, including costs and expenses

SECTION C: PRODUCTS AND COMPLETED OPERATIONS LIABILITY

Aggregate limit of liability:	USD1,000,000	in the aggregate, including costs and expenses
Deductible:	USD1,000	each and every claim, including costs and expenses



SECTION D: TENANTS' LEGAL LIABILITY

Aggregate limit of liability:	USD250,000	in the aggregate, including costs and expenses
Deductible:	USD1,000	each and every claim, including costs and expenses

SECTION E: MEDICAL EXPENSES

Limit of liability:	USD5,000	each and every claim
Deductible:	USD0	each and every claim

SECTION F: EMPLOYEE BENEFITS LIABILITY

Aggregate limit of liability:	USD1,000,000	in the aggregate, including costs and expenses
Deductible:	USD1,000	each and every claim, including costs and expenses

SECTION G: NON-OWNED AND HIRED AUTOMOBILE LIABILITY

Limit of liability:	USD1,000,000	each and every claim, including costs and expenses
Deductible:	USD2,500	each and every claim, including costs and expenses

SECTION H: LIABILITY FOR DAMAGE TO HIRED OR LEASED AUTOMOBILES

Limit of liability:	USD50,000	each and every claim, including costs and expenses
Deductible:	USD2,500	each and every claim, including costs and expenses

INSURING CLAUSE 6: COMMERCIAL PROPERTY

NO COVER GIVEN

INSURING CLAUSE 7: BUSINESS INTERRUPTION

NO COVER GIVEN

INSURING CLAUSE 8: LOSS MITIGATION

Aggregate limit of liability:	USD1,000,000	in the aggregate, including costs and expenses
Deductible:	USD0	each and every claim

INSURING CLAUSE 9: COURT ATTENDANCE COSTS

Aggregate limit of liability:	USD100,000	in the aggregate, including costs and expenses
Deductible:	USD0	each and every claim



INSURING CLAUSE 10: REPUTATION AND BRAND PROTECTION

Aggregate limit of liability:	USD100,000	in the aggregate, including costs and expenses
Deductible:	USD0	each and every claim



OUR REGULATORY STATUS

CFC Underwriting Limited is authorised and regulated by the United Kingdom Financial Conduct Authority (FCA). CFC Underwriting Limited's Firm Reference Number at the FCA is 312848. These details may be checked by visiting the Financial Conduct Authority website at <https://register.fca.org.uk/>. Alternatively, the Financial Conduct Authority may be contacted on +44 (0)20 7066 1000.

We are covered by the Financial Services Compensation Scheme (FSCS). You may be entitled to compensation from the scheme if we cannot meet our obligations to you in respect of insurance policies that we have underwritten on behalf of insurers. This depends on the type of business and the circumstances of the claim. In respect of general insurance business the FSCS will cover 90% of the claim, without any upper limit and for compulsory classes of insurance, the FSCS will cover 100% of the claim, without any upper limit. Further information about compensation scheme arrangements is available from the FSCS.

HOW TO COMPLAIN - USA

We intend to provide an excellent service to you. However, we recognize that there may be occasions when you feel that this has not been achieved. If you are unhappy with any aspect of the service that you receive from us, please contact CFC stating the nature of your complaint, the certificate and/or claim number.

You can contact us directly at complaints@cfc.com or please write to:

Chief Executive Officer
CFC Underwriting Limited
11th Floor, 8 Bishopsgate
London EC2N 4BQ
United Kingdom

If you remain dissatisfied after we have considered your complaint and provided our response, you may have the right to refer your complaint to the Department of Insurance in your State for review.

You will be provided with further information about your complaint escalation rights to the Department of Insurance in your State by us on receipt of your complaint.

The existence of this complaints procedure does not affect your right to commence a legal action or an alternative dispute resolution proceeding in accordance with your contractual rights.



DATA PROTECTION NOTICE

We collect and use relevant information about you to provide you with your insurance cover or the insurance cover that benefits you and to meet our legal obligations. Where you provide us or your agent or broker with details about other people, you must provide this notice to them.

The information we collect and use includes details such as your name, address and contact details and any other information that we collect about you in connection with the insurance cover from which you benefit. This information may include more sensitive details such as information about your health and any criminal convictions you may have.

In certain circumstances, we may need your consent to process certain categories of information about you (including sensitive details such as information about your health and any criminal convictions you may have). Where we need your consent, we will ask you for it separately. You do not have to give your consent and you may withdraw your consent at any time. However, if you do not give your consent, or you withdraw your consent, this may affect our ability to provide the insurance cover from which you benefit and may prevent us from providing cover for you or handling your claims.

The way insurance works means that your information may be shared with, and used by, a number of third parties in the insurance sector for example, insurers, agents or brokers, reinsurers, loss adjusters, sub-contractors, regulators, law enforcement agencies, fraud and crime prevention and detection agencies and compulsory insurance databases. We will only disclose your personal information in connection with the insurance cover that we provide and to the extent required or permitted by law.

We will process individual insured's details, as well as any other personal information you provide to us in respect of your insurance cover, in accordance with our privacy notice and applicable data protection laws.

To enable us to use individual insured's details in accordance with applicable data protection laws, we need you to provide those individuals with certain information about how we will use their details in connection with your insurance cover.

You agree to provide to each individual insured this notice, on or before the date that the individual becomes an individual insured under your insurance cover or, if earlier, the date that you first provide information about the individual to us.

We are committed to using only the personal information we need to provide you with your insurance cover. To help us achieve this, you should only provide to us information about individual insureds that we ask for from time to time.

You have rights in relation to the information we hold about you, including the right to access your information. If you wish to exercise your rights, discuss how we use your information or request a copy of our full privacy notice, please contact us directly at dataprotection@cfc.com.

For more information about how we use your personal information please see our full privacy notice, which is available online on our website at:

<http://www.cfc.com/privacy>



OTHER COSTS, FEES AND CHARGES

A Policy Administration Fee may be charged by CFC Underwriting Limited for administration costs incurred by it for its role in the distribution of this policy. Any applicable Policy Administration Fee:

- a. is separate from and in addition to the premium stated in the Declarations page; and
- b. constitutes a separate agreement between the Insured stated in the Declarations page and CFC Underwriting Limited which will come into effect upon inception of the policy.

If a Policy Administration Fee is applicable then it will be deemed fully earned upon inception of this policy and it will not be refundable in the event this policy is cancelled in accordance with the terms and conditions of this policy



LEAD INSURER INFORMATION

POLICY NUMBER:	PSO0140671916
THE INSURED:	Florida Agricultural Engineering Inc
THE INCEPTION DATE:	29 Jan 2026

This page provides the details of the lead insurer for the cover purchased under this Policy. These details are provided to you to confirm which syndicates are providing this cover and the security of this Policy.

Coverage:	INSURING CLAUSE 1: PROFESSIONAL LIABILITY
UMR:	B087525C9N5051
Underwriters:	Underwritten by certain underwriters at Lloyd's and other insurers
Led By:	CNP 4444

Coverage:	INSURING CLAUSE 5: COMMERCIAL GENERAL LIABILITY
UMR:	B087525C9N5053
Underwriters:	Underwritten by certain underwriters at Lloyd's and other insurers
Led By:	CFC 1988



KNOWN MATTERS EXCLUSION CLAUSE

ATTACHING TO POLICY PSO0140671916
NUMBER:

THE INSURED: Florida Agricultural Engineering Inc

WITH EFFECT FROM: 29 Jan 2026

It is understood and agreed that the following **EXCLUSION** is added to this Policy:

Known matters

arising directly or indirectly out of the following matters disclosed to **us**:

CL1804093G - 17 May 2024 - open fall claim.

**SUBJECT OTHERWISE TO THE TERMS AND CONDITIONS OF THE
POLICY**



U.S. TERRORISM RISK INSURANCE ACT OF 2002 AS AMENDED NOT PURCHASED CLAUSE

ATTACHING TO POLICY PSO0140671916
NUMBER:

THE INSURED: Florida Agricultural Engineering Inc
WITH EFFECT FROM: 29 Jan 2026

This Clause is issued in accordance with the terms and conditions of the "U.S. Terrorism Risk Insurance Act of 2002" as amended, as summarized in the disclosure notice.

It is hereby noted that **we** have made available coverage for "insured losses" directly resulting from an "act of terrorism" as defined in the "U.S. Terrorism Risk Insurance Act of 2002", as amended ("TRIA") and **you** have declined or not confirmed to purchase this coverage.

This Insurance therefore affords no coverage for losses directly resulting from any "act of terrorism" as defined in TRIA except to the extent, if any, otherwise provided by this Policy.

All other terms, Conditions and Exclusions of this Insurance including applicable limits and deductibles remain unchanged and apply in full force and effect to the coverage provided by this Insurance.

LMA5390 (Amended)
09 January 2020

**SUBJECT OTHERWISE TO THE TERMS AND CONDITIONS OF THE
POLICY**



Architects & engineers

Policy document

United States

PREAMBLE

IMPORTANT: COVERAGE TRIGGERS. It is important for **you** to review this Policy in its entirety carefully, including **CONDITION 1**, as the trigger for coverage, including when **you** must notify **us** of a claim, under each Section and Insuring Clause may differ.

Where **cyber events**, **system failures** or **operator errors** are not specifically excluded from a Section or Insuring Clause of this Policy, then a claim arising out of a **cyber event**, **system failure** or **operator error** which is otherwise covered under that Section or Insuring Clause will be payable, subject to all other terms, conditions and exclusions of this Policy.

This Policy is a contract of insurance between **you** and **us**. **Your** Policy contains all the details of the cover that **we** provide. This Policy consists of and must be read together with the Declarations page and any Endorsements. This Policy is not complete unless it is signed and a Declarations page is attached.

The sections of this Policy are identified by the blue lines across the page with white upper case print, these are for information purposes only and do not form part of the cover given by this Policy. Terms in bold upper case print are references to specific Insuring Clauses, Sections or Conditions. Other terms in bold lower case print are defined terms and have a special meaning as set forth in the Definitions section and elsewhere. Words stated in the singular will include the plural and vice versa.

In consideration of the **premium** and in reliance upon the information that **you** have provided to **us** prior to the commencement of this insurance, **we** agree to provide the cover as set out below:

INSURING CLAUSES

INSURING CLAUSE 1: PROFESSIONAL LIABILITY

SECTION A: ERRORS AND OMISSIONS

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of **your business activities** for any:

- a. negligent act, error, omission, misstatement or misrepresentation;
- b. breach of any contractual term implied by law concerning necessary quality, safety or fitness, or **your** duty to use reasonable care and skill;
- c. defamation, including but not limited to libel, slander, trade libel, product disparagement, injurious falsehood, emotional distress or outrage based on harm to the character or reputation of any person or entity;

- d. loss or damage to any documents in paper format in **your** care, custody or control; or
- e. other act, error or omission giving rise to civil liability, but not any breach of contract other than as specified above.

We will also pay **costs and expenses** on **your** behalf.

SECTION B: BREACH OF CONTRACT

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period as a direct result of any unintentional breach of a contract with a **client** for the provision of **your business activities**.

We will also pay **costs and expenses** on **your** behalf.

SECTION C: SUB-CONTRACTOR VICARIOUS LIABILITY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period as a direct result of any act, error or omission by any sub-contractor engaged by **you** for the provision of **your business activities**.

We will also pay **costs and expenses** on **your** behalf.

SECTION D: CONTINGENT BODILY INJURY AND PROPERTY DAMAGE LIABILITY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of **bodily injury** or **property damage** caused as a direct result of **your business activities**.

We will also pay **costs and expenses** on **your** behalf.

SECTION E: INTELLECTUAL PROPERTY RIGHTS INFRINGEMENT

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of the provision of **your business activities** for any:

- a. infringement of any **intellectual property rights**, breach of any **intellectual property rights** license acquired by **you** or failure to attribute authorship or provide credit;
- b. act of passing-off, piracy or plagiarism or any misappropriation of content, concepts, format rights or ideas or breach of a contractual warranty relating to **intellectual property rights**;
- c. misappropriation of a trade secret;

- d. invasion, infringement or interference with rights of privacy or publicity, including false light, public disclosure of private facts, intrusion, breach of confidence and commercial appropriation of name or likeness; or
- e. breach of agreement, breach of confidentiality or promissory estoppel, in connection with the failure to maintain the confidentiality of a source or materials furnished by a source or the failure to portray a source or a subject in a certain light.

We will also pay **costs and expenses** on **your** behalf.

SECTION F: POLLUTION LIABILITY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of **pollution** caused as a direct result of **your business activities**.

We will also pay **costs and expenses** on **your** behalf.

SECTION G: REGULATORY COSTS AND FINES

We agree to pay on **your** behalf **costs and expenses** and any fines or penalties as a result of any **regulatory investigation** first initiated against **you** during the **period of the policy** or any applicable optional extended reporting period arising directly out of the provision of **your business activities**.

However, **we** will not pay **costs and expenses**, fines or penalties in respect of any **regulatory investigation** affecting the wider environment in which **you** conduct **your business activities**, as opposed to any **regulatory investigation** solely affecting **you**.

SECTION H: DISHONESTY OF EMPLOYEES

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of any dishonesty by any **employee** in the provision of **your business activities**.

We will also pay **costs and expenses** on **your** behalf.

SECTION I: PAYMENT OF WITHHELD FEES

We agree to pay **your withheld fees** in the event that a **client** of **yours** brings or threatens to bring a **claim** against **you** that would be covered under **INSURING CLAUSE 1 (SECTIONS A, B, C, D, E and H only)** for an amount greater than **your withheld fees** if **you** attempt to recover the **withheld fees** from them. Prior to payment of **your withheld fees** **you** must obtain written confirmation from the **client** that they will not bring a **claim** against **you** if **you** agree not to pursue them for **your withheld fees** and provide it to **us**.

INSURING CLAUSE 2: CYBER AND PRIVACY

SECTION A: NETWORK SECURITY AND PRIVACY LIABILITY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including the establishment of any consumer redress fund and associated expenses) as a result of any **claim** arising out of a **cyber event** first discovered by **you** during the **period of the policy** that results in:

- a. the transmission of malware to a **third party's computer system**;
- b. **your computer systems** being used to carry out a denial of service attack;
- c. **your** failure to prevent unauthorized access to information stored or applications hosted on **your computer systems** or a **third party's computer systems**; or
- d. identity theft, experienced by **your employees** or any **third party**.

We also agree to pay on **your** behalf any fines, penalties and card brand assessments including fraud recoveries, operational reimbursements, non-cooperation costs and case management fees which **you** become legally obliged to pay as a direct result of a **payment card breach** first discovered by **you** during the **period of the policy**.

We will also pay **costs and expenses** on **your** behalf.

SECTION B: INCIDENT RESPONSE COSTS

We agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, as a direct result of a **cyber event** first discovered by **you** during the **period of the policy** to:

- a. gain access to **our 24/7 cyber incident response line**;
- b. engage with **our claims manager** who will coordinate the initial response;
- c. obtain initial advice and consultancy from **our claims manager**, including threat intelligence in relation to the **cyber event**; and
- d. obtain initial remote support and assistance from **our claims manager** to respond to the **cyber event**.

SECTION C: LEGAL, FORENSIC AND BREACH MANAGEMENT COSTS

We agree to pay on **your** behalf any reasonable sums necessarily incurred by **you**, or on **your** behalf, as a direct result of a **cyber event** which is first discovered by **you** during the **period of the policy** to:

- a. obtain initial legal advice to determine **your privacy breach** notification obligations;
- b. notify any appropriate regulatory body, respond to and defend any **regulatory investigation** and pay any fines and penalties imposed on **you** as a direct result of the **regulatory investigation**;
- c. engage with an external IT security consultant to identify the source and scope of the **cyber event**, contain and remove any malware discovered on **your computer systems** and conduct a forensic investigation of **your computer systems** where reasonable and

- necessary or as required by law or a regulatory body (including a requirement for a PCI Forensic Investigator);
- d. engage with a crisis communications consultant to obtain specific advice in direct relation to the **cyber event**;
 - e. print and post appropriate notices for any individual affected by the **cyber event** or to send e-mail notices or issue substitute notices, including any **privacy breach** notification that **you** are not legally obliged to make; and
 - f. provide credit monitoring services, identity monitoring services, identity restoration services or identity theft insurance as appropriate to affected individuals including setting up a call center to manage inbound and outbound calls in direct relation to the **cyber event**.

SECTION D: SYSTEM DAMAGE AND RECTIFICATION COSTS

We agree to reimburse **you** for the additional cost of employing:

- a. contract staff or overtime costs for **employees** to rebuild **your** data, including the cost of data re-entry or data re-creation;
- b. specialist consultants, including IT forensic consultants, to recover **your** data or applications; and
- c. specialist consultants or overtime costs for **employees** working within **your** IT department to reconstitute **your computer systems** to the position they were in immediately prior to the **cyber event**;

as a direct result of a **cyber event** first discovered by **you** during the **period of the policy**.

SECTION E: HARDWARE REPLACEMENT COSTS

We agree to pay on **your** behalf any reasonable sums necessarily incurred to replace any computer hardware or tangible equipment forming part of **your computer systems** that have been rendered unusable as a direct result of a **cyber event** first discovered by **you** during the **period of the policy**, provided that replacing the computer hardware or tangible equipment is a more cost effective solution than installing new firmware or software onto **your** existing hardware.

For the purposes of this Section, **we** will also pay the reasonable costs necessarily incurred to purchase and install temporary computer hardware or tangible equipment that are necessary in the interim for the sole purpose of facilitating the recovery of **your** data or systems during the remediation phase of the **cyber event**.

SECTION F: SYSTEM BUSINESS INTERRUPTION AND REPUTATIONAL HARM

We agree to reimburse **you** for **your actual loss sustained** and **extra expense** sustained during the **indemnity period** as a direct result of an interruption to **your business activities** caused by **computer systems** downtime arising directly out of a **cyber event**, **system failure** or **operator error**

which is first discovered by **you** during the **period of the policy**, provided that the **computer systems** downtime lasts longer than the **time franchise**.

We also agree to reimburse **you** for **your actual loss sustained** during the **reputational harm period** as a direct result of the loss of current or future customers caused by damage to **your** reputation as a result of a **cyber event** first discovered by **you** during the **period of the policy**.

SECTION G: DEPENDENT BUSINESS INTERRUPTION

We agree to reimburse **you** for **your actual loss sustained** and **extra expense** sustained during the **indemnity period** as a direct result of an interruption to **your** business operations arising directly out of any sudden, unexpected and continuous outage of **computer systems** used directly by a **supply chain partner** which is first discovered by **you** during the **period of the policy**, provided that the computer systems downtime lasts longer than the **time franchise** and arises directly out of any **cyber event**, **system failure** or **operator error**.

SECTION H: CLAIM PREPARATION COSTS

We agree to pay on **your** behalf any reasonable sums necessarily incurred to determine the amount of **your actual loss sustained** following an interruption to **your business activities** covered under **INSURING CLAUSE 2 (SECTIONS D, E, F and G only)**. We will only pay these costs where they are incurred with an expert appointed by the **claims manager**.

INSURING CLAUSE 3: CYBER CRIME

SECTION A: FUNDS TRANSFER FRAUD

We agree to reimburse **you** for **loss** first discovered by **you** during the **period of the policy** as a direct result of any **third party** committing:

- a. any unauthorized electronic transfer of **company** funds from a bank;
- b. theft of the **company's** money or other financial assets from a bank by electronic means;
- c. theft of money or other financial assets from **your** corporate credit cards by electronic means; or
- d. any phishing, vishing or other social engineering attack against any **employee** or **senior executive officer** that results in the transfer of **company** funds to an unintended **third party**.

SECTION B: THEFT OF FUNDS HELD IN ESCROW

We agree to reimburse the **company** for **loss** (including compensation that the **company** is legally obliged to pay) first discovered by **you** during the **period of the policy** as a direct result of the **company** having to reimburse a **client** for theft of the **client's** money or other financial assets from a bank account held in **your** name on behalf of the **client**, provided that the theft was committed by a **third party** by electronic means, including any phishing, vishing or other social engineering attack against **you**.

SECTION C: CUSTOMER PAYMENT FRAUD

We agree to reimburse the **company** in the event of fraudulent electronic communications or websites designed to impersonate the **company** or any of **your** products first discovered by **you** during the **period of the policy**, for **loss** directly attributable to:

- a. reimbursing **your** existing customers for their financial loss arising directly from the fraudulent communications, including fraudulent invoices manipulated to impersonate **you**, where goods or services have not been provided to the customers by **you** or on **your** behalf; or
- b. **your** existing customers paying fraudulent invoices manipulated to impersonate **you**, where goods or services have been provided to the customers by **you** or on **your** behalf, provided that the fraudulent electronic communications are as a direct result of a **third party** compromising the **company's** network security.

We also agree to reimburse the **company** for:

- a. costs of creating and issuing a specific press release or establishing a specific website to advise **your** current and prospective customers of these fraudulent communications; and
- b. external costs associated with the removal of those websites designed to impersonate the **company**.

SECTION D: TELEPHONE HACKING

We agree to reimburse **you** for **loss** associated with the cost of unauthorized calls or unauthorized use of **your** bandwidth first discovered by **you** during the **period of the policy** as a direct result of **your** telephone system being hacked by a **third party**.

SECTION E: UNAUTHORIZED USE OF COMPUTER RESOURCES

We agree to reimburse **you** for **loss** first discovered by **you** during the **period of the policy** as a direct result of **cryptojacking** or **botnetting**.

INSURING CLAUSE 4: CYBER EXTORTION

We agree to pay on behalf of the **company** any ransom in response to an extortion demand made against **you** and first discovered by **you** during the **period of the policy** as a direct result of any actual or threat of:

- a. introduction of malware, including ransomware, into **your computer systems**;
- b. prevention of access to **your computer systems** or any **third party** systems hosting **your** applications or data;
- c. disclosure of **your** confidential information or confidential information entrusted to **you**; or
- d. damage to **your** brand or reputation by posting false or misleading information about **you** on social media sites.

We will also pay on behalf of the **company** the reasonable and necessary costs incurred to respond to the extortion demand (including costs incurred to procure cryptocurrency for the purposes of paying the ransom or in negotiating with the individual or organization making the extortion demand against **you**).

INSURING CLAUSE 5: COMMERCIAL GENERAL LIABILITY

SECTION A: BODILY INJURY AND PROPERTY DAMAGE LIABILITY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **bodily injury** or **property damage** in the course of **your** business activities first occurring during the **period of the policy**.

We will also pay **costs and expenses** on **your** behalf.

SECTION B: PERSONAL AND ADVERTISING INJURY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **personal injury** or **advertising injury** first occurring during the **period of the policy**.

We will also pay **costs and expenses** on **your** behalf.

SECTION C: PRODUCTS AND COMPLETED OPERATIONS LIABILITY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **bodily injury** or **property damage** first occurring during the **period of the policy** caused directly by any **product**.

We will also pay **costs and expenses** on **your** behalf.

SECTION D: TENANTS' LEGAL LIABILITY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **property damage** to premises leased to, hired by, on loan to or held in trust by **you** or otherwise in **your** care, custody or control first occurring during the **period of the policy**.

We will also pay **costs and expenses** on **your** behalf.

SECTION E: MEDICAL EXPENSES

We agree to pay **medical expenses** for **bodily injury** to a **third party** caused by an accident first occurring during the **period of the policy** in the course of **your** business activities, provided that:

- a. the **third party**, at the time of the accident, is not entitled to benefits under any workers' compensation or disability benefits law or similar law;
- b. the **medical expenses** are incurred and notified to **us** within one year of the date of the accident; and

- c. the **third party** submits to examination, at **our** expense, by physicians of **our** choice and as often as **we** reasonably require.

We will make these payments regardless of fault.

SECTION F: EMPLOYEE BENEFITS LIABILITY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** first made against **you** during the **period of the policy** or any applicable optional extended reporting period arising out of any act, error or omission committed by **you** or on **your** behalf in the **administration** of **your employee benefit program**.

We will also pay **costs and expenses** on **your** behalf.

SECTION G: NON-OWNED AND HIRED AUTOMOBILE LIABILITY

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' **costs and expenses**) as a result of any **claim** arising out of **bodily injury** or **property damage** occurring during the **period of the policy** in the course of **your** business activities resulting from the use or operation by **you** of any automobile that is not owned in whole or in part by the **company** or licensed in the name of the **company**.

We will also pay **costs and expenses** on **your** behalf.

SECTION H: LIABILITY FOR DAMAGE TO HIRED OR LEASED AUTOMOBILES

We agree to pay on **your** behalf all sums which **you** become legally obliged to pay (including liability for claimants' costs and expenses) as a result of any **claim** arising out of **property damage** to an automobile leased to or hired by **you** from a **third party** first occurring during the **period of the policy** in the course of **your** business activities.

We will also pay **costs and expenses** on **your** behalf.

INSURING CLAUSE 6: COMMERCIAL PROPERTY

SECTION A: BUILDINGS DAMAGE

We agree to reimburse **you** for any reasonable sums necessarily incurred to repair or rebuild **your premises** as a direct result of damage to **your premises** first occurring during the **period of the policy**.

SECTION B: GENERAL CONTENTS DAMAGE

We agree to reimburse **you** for any reasonable sums necessarily incurred to repair or replace **your general contents** that have been lost or damaged at **your premises** during the **period of the policy**.

SECTION C: PORTABLE CONTENTS

We agree to reimburse **you** for any reasonable sums necessarily incurred to repair or replace **your portable contents**, including laptops, mobile phones, cameras and other portable electronic equipment and tools that have been lost or damaged at or away from **your** premises during the period of the policy.

SECTION D: STOCK DAMAGE

We agree to reimburse **you** for any reasonable sums necessarily incurred to repair or replace **your stock** that has been lost or damaged during the **period of the policy**.

SECTION E: ADDITIONAL COVER FOR GENERAL CONTENTS AND STOCK

We agree to reimburse **you** for any reasonable sums necessarily incurred to repair or replace:

- a. **general contents** or **stock** in transit, including by parcel post and courier;
- b. **general contents** or **stock** while at an exhibition site or in the custody of a sales representative;
- c. materials, machinery and equipment that **you** have been contracted by a **third party** to install, provided **you** are legally liable for the materials, machinery and equipment and they are not left unattended for more than 30 consecutive days; and
- d. **general contents** that **you** have leased, rented, loaned or entrusted to a **third party** for up to a maximum period of 30 consecutive days;

that have been lost or damaged during the **period of the policy**.

SECTION F: ADDITIONAL EXPENSES

We agree to reimburse **you** for any reasonable sums necessarily incurred:

- a. to make temporary repairs to, expedite permanent repairs for, or expedite permanent replacement of, **your premises** or **contents**;
- b. to remove any debris;
- c. to extract **pollutants** from land or water;
- d. for professional services including architects, surveyors and engineers;
- e. to establish the value of the damage to **your premises** or **contents**;
- f. to locate the source of any water or oil leak, including the repair of any subsequent damage as a direct result of locating the water or oil leak;
- g. for rental payments **you** are legally obliged to pay during any period which **your premises** are unusable;
- h. for any fire department charges **you** incur;
- i. to re-charge fire extinguishing equipment;
- j. for security guard services to temporarily safeguard **your** damaged **premises**; and
- k. for a ransom paid for information directly leading to a conviction for any act of arson;

as a direct result of damage to **your premises** or **contents**, or the loss of **your contents**, occurring during the **period of the policy**.

SECTION G: NEWLY ACQUIRED OR CONSTRUCTED PROPERTY

We agree to reimburse **you** for any reasonable sums necessarily incurred to repair or rebuild any additional premises acquired or constructed by **you** during the **period of the policy**, and to repair or replace **your contents** at these premises, as a direct result of damage to the additional premises or **contents** first occurring during the **period of the policy** provided that **you** give **us** written notice within 60 days of the acquisition or commencement of construction and agree to any additional **premium** and terms of coverage required by **us**.

SECTION H: ORDINANCE OR LAW

We agree to reimburse **you** for the reasonable additional costs to repair or rebuild **your premises** to the minimum standards required to comply with the current building regulations and laws as a direct result of damage to **your premises** first occurring during the **period of the policy**.

INSURING CLAUSE 7: BUSINESS INTERRUPTION

SECTION A: ACTUAL LOSS SUSTAINED

We agree to reimburse **you** for **your actual loss sustained** during the **indemnity period** as a direct result of an interruption to **your** business activities caused by:

- a. damage to **your premises** or **contents**, other than damage causing failure in the supply of water, gas, electricity, telephone or internet to **your premises**;
- b. damage to **third party** property within a 10 kilometer or 6 mile radius of **your premises** which prevents access to **your premises**;
- c. damage to the property of one of **your** suppliers, other than a supplier of water, gas, electricity, telephone or internet; or
- d. failure in the supply of water, gas, electricity, telephone or internet to **your premises** for more than 24 consecutive hours as a direct result of damage to **your premises** or the property of **your** supplier of water, gas, electricity, telephone or internet;

first occurring during the **period of the policy**.

SECTION B: RENTAL INCOME

We agree to reimburse **you** for **your actual loss sustained** during the **indemnity period** as a direct result of a reduction in **your rental income** caused by damage to **your premises** first occurring during the **period of the policy**.

SECTION C: EXTRA EXPENSE

We agree to reimburse **you** for any reasonable sums over and above **your** normal operating expenses incurred to:

- a. mitigate an interruption to and continue **your** business activities during the **indemnity period**, provided that the costs are less than the expected **actual loss sustained** had these measures not been taken; and
- b. re-locate to alternative premises during the **indemnity period**, if **you** and **we** agree that it is not practicable or reasonable for **you** to repair or rebuild the damaged **premises**.

SECTION D: NEWLY ACQUIRED OR CONSTRUCTED PROPERTY

We agree to reimburse **you** for **your actual loss sustained** during the **indemnity period** as a direct result of an interruption to **your** business activities caused by damage to any additional premises acquired or constructed by **you** during the **period of the policy**, provided that **you** give **us** written notice within 60 days of the acquisition or commencement of construction and agree to any additional **premium** and terms of coverage required by **us**.

SECTION E: PROFESSIONAL FEES

We agree to reimburse **you** for any reasonable sums necessarily incurred for professional fees to establish the value of **your actual loss sustained** as a direct result of an interruption to **your** business activities.

INSURING CLAUSE 8: LOSS MITIGATION

In respect of **INSURING CLAUSE 1**, **we** agree to reimburse **you** for any reasonable costs necessarily incurred by **you** with **our** prior written agreement (which will not be unreasonably withheld) in respect of measures taken by **you** to rectify any act, error or omission that resulted in a **claim** or may result in a **claim** for which **you** would be entitled to indemnity under this Policy had these measures not been taken, provided that:

- a. these rectification measures are taken for the sole purpose of mitigating the **claim** or avoiding a **claim**; and
- b. the costs in respect of these rectification measures taken by **you** are less than the expected value of the **claim**.

We will not make any payment under this Insuring Clause in respect of any costs that include any provision for:

- a. salaries or other remuneration of **employees**;
- b. **your** loss of profit;
- c. **your** normal operating expenses; or
- d. goodwill payments or other amounts that **you** are not contractually obliged to pay.

INSURING CLAUSE 9: COURT ATTENDANCE COSTS

We agree to reimburse **you** for any reasonable sums necessarily incurred by **you** with **our** prior written agreement (which will not be unreasonably withheld) to attend court or any tribunal, arbitration, adjudication, mediation or other hearing in connection with any claim for which **you** are entitled to indemnity under this Policy.

INSURING CLAUSE 10: REPUTATION AND BRAND PROTECTION

We agree to reimburse **you** for any reasonable sums necessarily incurred with **our** prior written agreement (which will not be unreasonably withheld) for the services of a public relations consultancy to avert or mitigate damage to **your** reputation or brand as a direct result of any media report that names **you** and publicizes an act or event that is the subject of a claim for which **you** are entitled to indemnity under this Policy.

HOW MUCH WE WILL PAY

The maximum amount payable by **us** in respect of each Section and each Insuring Clause will not exceed the **limit of liability**.

In respect of all coverages other than **INSURING CLAUSES 6 and 7**, where any claim is covered under multiple Sections each Section will cover its part of the claim to the extent of the available **limit of liability**. In the event any Section covering the claim is exhausted no other Section of the Policy covering the claim will provide additional cover. Regardless of how many Sections cover any claim only one overall **limit of liability** will be available and this will be the highest **limit of liability** of the Sections covering the claim. The **limits of liability** available, other than the highest **limit of liability**, under the Sections covering the claim will always be a part of and not in addition to the highest **limit of liability**. For the purposes of this paragraph, **INSURING CLAUSES 4, 8, 9 and 10** will each be considered a Section.

In respect of all coverages other than **INSURING CLAUSES 6 and 7**, where more than one claim under this Policy arises from the same original cause or single source or event, all of those claims will be deemed to be one claim and only one **limit of liability** will be payable.

We may at any time pay to **you** in connection with any **claim** the amount of the **limit of liability** (after deduction of any amounts already paid). Upon that payment being made **we** will relinquish the conduct and control of the **claim** and be under no further liability in connection with that **claim** except for the payment of **costs and expenses** incurred prior to the date of such payment (unless the **limit of liability** is stated to be inclusive of **costs and expenses**).

If **costs and expenses** are stated in the Declarations page to be in addition to the **limit of liability**, or if the operation of local laws require **costs and expenses** to be paid in addition to the **limit of liability**, and if a damages payment in excess of the **limit of liability** has to be made to dispose of any **claim**, **our** liability for **costs and expenses** will be in the same proportion as the **limit of liability** bears to the total amount of the damages payment.

In respect of **INSURING CLAUSE 6 (SECTIONS A, B, C and D only)**, the co-insurance percentage is 85%. This means that if, at the time of damage or loss, the amount insured for any **building address** is less than 85% of the total cost to repair, replace or rebuild **your premises or contents** at

that **building address**, the amount **we** will pay will be reduced in the same proportion that the amount insured bears to the total cost to repair, replace or rebuild **your premises** or **contents**.

Example for calculating under insurance:

- a. Total cost to repair, replace or rebuild all of **your premises** at building address 1 = \$500,000;
- b. 85% of \$500,000 = \$425,000;
- c. Amount insured for **premises** at building address 1 = \$400,000;
- d. Therefore if a \$450,000 loss for damage to the **premises** at building address 1 occurs, **we** would pay \$360,000;
- e. This has been calculated as the amount insured / total cost to repair, replace or rebuild the **premises** at building address 1 x the loss amount ($\$400,000 / \$500,000 \times \$450,000 = \$360,000$).

If **we** pay to replace **your general contents** or **portable contents**, **we** will do so on a new for old basis. However, for **general contents** that are part of a pair or set, **we** will pay the lower of the:

- a. cost to repair or replace the pair or set; or
- b. market value of the pair or set on the date of loss of or damage to the pair or set occurred, if repair or replacement is not possible.

YOUR DEDUCTIBLE

We will only be liable for that part of each and every claim which exceeds the amount of the **deductible**. If any expenditure is incurred by **us** which falls within the amount of the **deductible**, then **you** will reimburse that amount to **us** upon **our** request.

Where more than one claim under this Policy arises from the same original cause or single source or event all of those claims will be deemed to be one claim and only one **deductible** will apply.

In respect of **INSURING CLAUSE 2 (SECTIONS F and G only)**, a single **time franchise, deductible and indemnity period** will apply to each claim. Where the same original cause or single source or event causes more than one period of **computer systems** downtime these will be considered one period of **computer systems** downtime whose total duration is equal to the cumulative duration of each individual period of **computer systems** downtime

Where cover is provided under multiple Sections or multiple Insuring Clauses only one **deductible** will apply to that claim and this will be the highest **deductible** of the Sections under which cover is provided.

DEFINITIONS

1. **"Actual loss sustained"** means
your income that, had the incident which gave rise to the claim not occurred, would have been generated directly from **your business activities** (less sales tax) during the **indemnity period**, less:
 - a. actual income (less sales tax) generated directly from **your business activities** during the **indemnity period**; and
 - b. any cost savings achieved as a direct result of the reduction in income.
2. **"Administration"** means
 - a. advising **employees**, including their dependents and beneficiaries, in respect of **your employee benefit program**;
 - b. handling records in respect of **your employee benefit program**; and
 - c. effecting enrolment or termination of any **employee's** participation in a plan included in **your employee benefit program**.
3. **"Advertising injury"** means
 - a. oral or written publication of defamatory content;
 - b. oral or written publication of content that violates a person's right of privacy; or
 - c. infringement of copyright, trade dress, slogan or a **third party's** advertising idea;

in **your** advertising or promotional material.
4. **"Approved claims panel providers"** means
the approved claims panel providers stated in the Declarations page.
5. **"Bodily injury"** means
death, bodily injury, mental injury, illness or disease.
6. **"Botnetting"** means
the unauthorized use of **your computer systems** by a **third party** for the purpose of launching a denial of service attack or hacking attack against another **third party**.
7. **"Building address"** means
a building address stated in the Commercial Property and Business Interruption Sub-limits Declarations page.
8. **"Business activities"** means
the business activities stated in the Declarations page.

9. "Claim" means

- a. a written demand for compensation;
- b. a written request for a retraction or a correction;
- c. a threat or initiation of a lawsuit; or
- d. in respect of **INSURING CLAUSES 1 (SECTION G only) and 2 (SECTION C only)**, a **regulatory investigation**;

made against **you**.

10. "Claims managers" means

the claims managers stated in the Declarations page.

11. "Client" means

any **third party** with whom **you** have a contract in place for the supply of **your business activities** in return for a fee, or where a fee would normally be expected to be paid.

12. "Company" means

the company named as the Insured in the Declarations page or any **subsidiary**.

13. "Computer systems" means

all electronic computers including operating systems, software, hardware, microcontrollers and all communication and open system networks and any data or websites wheresoever hosted, off-line media libraries and data back-ups and mobile devices including but not limited to smartphones, iPhones, tablets or personal digital assistants.

14. "Contents" means

- a. **general contents**;
- b. **stock**; and
- c. **portable contents**.

15. "Continuity date" means

the **inception date** or if **you** have maintained uninterrupted insurance of the same type with **us**, the date this insurance was first incepted with **us**.

16. "Costs and expenses" means

- a. **third party** legal and professional expenses (including disbursements) reasonably incurred in the defense of **claims** or circumstances which could reasonably be expected to give rise to a **claim** or in quashing or challenging the scope of any injunction, subpoena or witness summons;
- b. any post judgment interest; and
- c. the cost of appeal, attachment and similar bonds including bail and penal bonds.

Subject to all costs and expenses being incurred with the **claims managers'** prior written agreement (which will not be unreasonably withheld).

17. "Cryptojacking" means

the unauthorized use of **your computer systems** by a **third party** for the sole purpose of cryptocurrency mining activities.

18. "Cyber event" means

any actual or suspected:

- a. unauthorized access to or electronic attack designed to damage, destroy, corrupt, overload, circumvent or otherwise impair the functionality of:
 - a. in respect of all Sections of **INSURING CLAUSE 2**, other than **SECTION G** only, **computer systems** used directly by **you**;
 - b. in respect of **INSURING CLAUSE 2 (SECTION G only)**, **computer systems** used directly by a **supply chain partner**; and
 - c. in respect of all other Insuring Clauses and Sections, any **computer systems**;

including an attack that utilizes artificial intelligence (AI), denial of service attack, cyber terrorism, hacking attack, Trojan horse, phishing attack, man-in-the-middle attack, application-layer attack, compromised key attack, malware infection (including spyware or ransomware) or computer virus; or

- b. **privacy breach**.

19. "Cyber incident response line" means

the telephone number stated as the cyber incident response line in the Declarations page.

20. "Cyber war" means

any unauthorized access to or electronic attack on **computer systems**, carried out by or on behalf of a **state**, that directly results in another **state** becoming an **impacted state**.

21. "Deductible" means

the amount stated as the deductible in the Declarations page.

22. "Earth movement" means

any type of earth movement, including earthquake, subsidence, landslide, erosion or the expansion or contraction of soil.

"Earth movement" does not mean any sinkhole collapse.

23. "Employee" means

any employee of the **company** and any volunteer working for the **company**.

24. "Employee benefit program" means

the **company's** insurance, pension or other benefit programs.

25. **"Expiry date"** means
the expiry date stated in the Declarations page.
26. **"Extra expense"** means
your reasonable sums necessarily incurred in addition to **your** normal operating expenses to mitigate an interruption to and continue **your** business activities, provided that the costs are less than **your** expected **actual loss sustained** had these measures not been taken.
27. **"Flood"** means
- surface water, underground water, waves, tides, tidal waves, tsunamis or overflow of any body of water;
 - mudslide or mudflow; or
 - water or sewerage from a backed up sewer, sump, septic tank or drain.
28. **"General contents"** means
items that:
- the **company** owns or is legally responsible for, other than **stock** and **portable contents**;
 - are used primarily in connection with **your business activities**; and
 - are not permanently attached to a building, including:
 - improvements made to the **premises** by **you** as a tenant or by a previous tenant who previously occupied the **premises**, including decorating, flooring, internal fixtures and fittings, aerials and satellite dishes;
 - desktop computer hardware and ancillary equipment (including monitors, keyboards and printers);
 - television, photocopying and telecommunications equipment;
 - valuable documents including plans and designs in paper format;
 - heating oil contained in fixed tanks in the open at **your premises**;
 - refrigeration, ventilation, cooking, dishwashing and laundry appliances;
 - locks and keys, provided this is necessary to maintain the security of **your premises** or safes;
 - any trailer, provided that it was unattached from, being attached to, or being detached from, a motor vehicle when the damage occurred; and
 - outdoor signs located on the **premises**.
- "General contents"** also means the personal belongings of any **employee** or visitor whilst at **your premises**, provided they are not covered under any other insurance.
29. **"Impacted state"** means
any **state** that suffers a major detrimental impact on its:
- ability to function; or
 - defense and security capabilities;

as a direct result of any unauthorized access to or electronic attack on **computer systems**, carried out by or on behalf of another **state**.

30. **"Inception date"** means

the inception date stated in the Declarations page.

31. **"Indemnity period"** means

the period starting from:

- a. in respect of **INSURING CLAUSE 2 (SECTIONS F and G only)**, the first occurrence of the **computer systems** downtime;
- b. in respect of **INSURING CLAUSE 7**, the:
 - i. date the damage or prevention of access was first discovered; or
 - ii. initial 24 consecutive hours **you** have no water, gas, electricity, telephone or internet services has passed;

and lasting for the indemnity period stated in the Declarations page.

32. **"Intellectual property rights"** means

any intellectual property right including, but not limited to, copyright, trademark, trade dilution, trade dress, design rights, domain name rights, moral rights, service mark or service name, but not including any patent.

33. **"Limit of liability"** means

if expressed in the Declarations page as:

- a. "limit of liability" or "amount insured", the maximum amount payable by **us** in respect of each claim; or
- b. "aggregate limit of liability" or "aggregate amount insured", the maximum amount payable by **us** in respect of all claims under this Policy.

34. **"Loss"** means

any direct financial loss sustained by the **company**.

35. **"Medical expenses"** means

reasonable and necessary expenses for:

- a. first aid administered at the time of an accident;
- b. medical, surgical, x-ray and dental services, including prosthetic devices; and
- c. ambulance, hospital, professional nursing and funeral services.

36. **"Operator error"** means

any unintentional human error in entering or amending electronic data within:

- a. in respect of **INSURING CLAUSE 2 (SECTION F only)**, **computer systems** used directly by **you**;
- b. in respect of **INSURING CLAUSE 2 (SECTION G only)**, **computer systems** used directly by a **supply chain partner**; and
- c. in respect of all other Insuring Clauses and Sections, any **computer systems**;

or in the upgrade, maintenance or configuration of those **computer systems**, where the proximate cause is not physical damage to any tangible equipment or property.

"**Operator error**" does not mean any error in the design or architecture of any **computer systems**.

37. "**Payment card breach**" means

an actual or suspected unauthorized disclosure of payment card data stored or processed by **you** arising out of an electronic attack, accidental disclosure or the deliberate actions of a rogue **employee**.

"**Payment card breach**" does not mean a situation where payment card data is deliberately shared with or sold to a **third party** with the knowledge and consent of a **senior executive officer**.

38. "**Period of the policy**" means

the period between the **inception date** and the **expiry date** or until the Policy is canceled in accordance with **CONDITION 6**.

39. "**Personal injury**" means

- a. false arrest, detention or imprisonment;
- b. malicious prosecution; or
- c. wrongful entry into, or eviction of a person from, a room, dwelling or premises that the person occupies.

40. "**Pollutants**" means

any solid, liquid, gaseous, radiological or thermal irritant, toxic or hazardous substance, or contaminant including, but not limited to smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste materials, including recycled, reconditioned or reclaimed materials.

41. "**Pollution**" means

the discharge, dispersal, release, migration, seepage or escape of **pollutants**.

42. "**Portable contents**" means

items that the **company** owns or is legally responsible for that are used primarily in connection with **your** business activities and designed to be portable, regardless of whether **you** use these as portable items, including laptops, mobile phones, electronic tablets,

cameras, tools and video, photographic, surveying and portable telecommunications equipment.

"Portable contents" does not mean **stock**.

43. "**Premises**" means

- a. the building, including any foundations of the building or structure;
- b. any completed extension to the building;
- c. any permanently installed machinery and equipment;
- d. any permanently attached fixtures and fittings;
- e. landlord's fixtures and fittings;
- f. retaining walls, outdoor walls, gates, fences, yards, car parks, roadways and pavements;
- g. trees, shrubs, plants and lawns;
- h. piping, ducting, cables, wires and accessories extending to the public mains that **you** are responsible for; and
- i. fixed glass in windows, doors, skylights, mirrors fixed to the building, glass showcases and shelves fixed to the building, sanitary fixtures and fittings and other fixed glass;

at the **building address**.

44. "**Premium**" means

the amount stated as the premium in the Declarations page and any subsequent adjustments.

45. "**Privacy breach**" means

an actual or suspected unauthorized disclosure of information arising out of an electronic attack, accidental disclosure, theft or the deliberate actions of a rogue **employee** or **third party**, including Personally Identifiable Information (PII), Protected Health Information (PHI) and payment card information.

"**Privacy breach**" does not mean a situation where information is deliberately shared with or sold to a **third party** with the knowledge and consent of a **senior executive officer**.

46. "**Product**" means

any tangible property, after it has left **your** care, custody or control, that has been manufactured, distributed or installed by **you** or on **your** behalf.

47. "**Property damage**" means

direct physical damage to, destruction of, loss of possession or loss of use of tangible property.

48. "**Regulatory investigation**" means

a formal hearing, official investigation, examination, inquiry, legal action or any other similar proceeding initiated by a governmental, regulatory, law enforcement, professional or statutory body against **you**.

49. "Rental income" means

- a. the anticipated gross rental income from tenant occupancy of **your premises**;
- b. the amount of all charges which are the legal obligation of the tenants, which would otherwise be **your** obligation; and
- c. the fair rental value of any portion of **your premises** which is occupied by **you**.

50. "Reputational harm period" means

the period starting from when the **cyber event** is first discovered and lasting for the period stated as the reputational harm period in the Declarations page.

51. "Retroactive date" means

the retroactive date stated in the Declarations page.

52. "Senior executive officer" means

board members, C-level executives, in-house lawyers and risk managers of the **company**.

53. "State" means

sovereign state.

54. "Stock" means

- a. stock;
- b. samples;
- c. merchandise goods; and
- d. goods held in trust;

whilst at **your premises** or at the **premises** of **your** supply chain partner provided those **premises** are stated in the Commercial Property and Business Interruption Sub-limits Declarations page and **you** are legally responsible for the stock whilst located at those premises.

"**Stock**" also means stock that has been sold by **you** to a **third party** on a deferred payment plan, however, the maximum amount **we** will pay is the **limit of liability** or an amount equal to any unpaid balance, whichever is less.

55. "Subsidiary" means

any entity which the **company** has majority ownership of, meaning more than 50% ownership, on or before the **inception date**.

56. "Supply chain partner" means

any:

- a. **third party** that provides **you** with hosted computing services including infrastructure, platform, file storage and application level services; or

- b. **third party** listed as a supply chain partner in an endorsement attaching to this policy which **we** have issued.

57. **"System failure"** means

any sudden, unexpected and continuous downtime of:

- a. in respect of **INSURING CLAUSE 2 (SECTION F only)**, **computer systems** used directly by **you**;
- b. in respect of **INSURING CLAUSE 2 (SECTION G only)**, **computer systems** used directly by a **supply chain partner**; and
- c. in respect of all other Insuring Clauses and Sections, any **computer systems**;

which renders them incapable of supporting their normal business function and is caused by an application bug, an internal network failure or hardware failure.

"System failure" does not mean a **cyber event**.

58. **"Third party"** means

any person who is not an **employee** or any legal entity that is not the **company**.

59. **"Time franchise"** means

the number of hours stated as the time franchise in the Declarations page.

60. **"Tracking and targeted advertising technologies"** means

website tracking tools, HTTP cookies, or any other method or technology actually or allegedly used for behavioural targeting, user profiling, personalized advertising or any other similar purpose.

61. **"War"** means

any physical:

- a. war, invasion, acts of foreign enemies, hostilities or warlike operations (whether war is declared or not), civil war, rebellion, insurrection, civil commotion assuming the proportions of or amounting to an uprising, military or usurped power; or
- b. action taken in controlling, preventing, suppressing or in any way relating to a. above.

62. **"We/our/us"** means

the underwriters stated in the Declarations page.

63. **"Withheld fees"** means

any contractually due fee that **your client** refuses to pay **you**, but excluding any part of the fee that represents **your** profit or mark-up or liability for taxes.

64. **"You/your"** means

- a. the **company**;

- b. any past, present or future **employees** solely acting in the normal course of the **company's business activities**;
- c. the estates, heirs, legal representatives or assigns of any **employee** in the event of their death, incapacity, insolvency or bankruptcy but only with respect to any act, error or omission committed or alleged to have been committed by the **employee** while acting in their capacity as **employee**; and
- d. the parent, spouse, domestic partner, civil partner or child of any **employee** but only in respect of any **claim** made against them by reason of:
 - i. their status as parent, spouse, domestic partner, civil partner or child of the **employee**; or
 - ii. their ownership or interest in property which the claimant seeks as recovery for an alleged act, error or omission committed by the **employee** while acting in their capacity as **employee**.

EXCLUSIONS

We will not make any payment under this Policy:

EXCLUSIONS RELATING TO PROFESSIONAL LIABILITY

In respect of **INSURING CLAUSE 1** only:

1. Unauthorized funds transfer

arising directly or indirectly out of any transfer of funds or financial assets to an unintended **third party** as a result of any phishing, vishing or other social engineering attack.

2. Workmanship

arising directly out of any physical workmanship in the manufacture, fabrication, construction, erection, installation, assembly, alteration, servicing, remediation, repair, demolition or disassembly (including any materials, parts or equipment furnished in connection therewith) by **you** or on **your** behalf.

EXCLUSIONS RELATING TO CYBER AND PRIVACY

In respect of **INSURING CLAUSE 2** only:

3. Betterment

which results in **you** being in a better financial position or **you** benefitting from upgraded versions of **your computer systems** as a direct result of the event which gave rise to the claim under this policy.

However, in the event of a hacking attack, malware infection or computer virus, when rebuilding **your computer systems** we will pay the additional costs and expenses incurred to install a more secure and efficient version of the affected **computer system**, provided that the

maximum amount **we** will pay is 25% more than the cost that would have been incurred to repair or replace the original model or license. Under no circumstances will **we** pay the cost of acquiring or installing **computer systems** which did not form a part of **your computer systems** immediately prior to the incident which gave rise to the claim.

4. Property and hardware costs

for any tangible property repair or replacement including the cost of repairing any hardware or replacing any tangible property or equipment that forms part of **your computer systems**.

However, where repairing or replacing hardware or tangible property or equipment is a more practical and cost effective solution than installing new firmware or software onto **your** existing components, **we** will pay the costs required to do so.

5. Unlawful surveillance

arising directly or indirectly out of any actual or alleged eavesdropping, wiretapping, or unauthorized audio or video recording committed by **you** or by a **third party** on **your** behalf with the knowledge and consent of **your senior executive officers**.

EXCLUSIONS RELATING TO CYBER CRIME

In respect of **INSURING CLAUSE 3** only:

6. Theft of funds held in escrow

for theft of money or other financial assets belonging to a **client** from a bank account held in **your** name on behalf of that **client**.

However, this Exclusion will not apply to **INSURING CLAUSE 3 (SECTION B)** only).

EXCLUSIONS RELATING TO COMMERCIAL GENERAL LIABILITY

In respect of **INSURING CLAUSE 5** only:

7. Faulty workmanship

for the cost to repair or replace, including any ensuing financial loss:

- a. that part of any property that has been damaged by **you**, or a **third party** operating on **your** behalf, during its construction, distribution or installation;
- b. that part of any property as a direct result of faulty workmanship by **you**, or a **third party** operating on **your** behalf, during its construction or installation; or
- c. any undamaged property that contains any **product**, unless the **product** which the property contains has been damaged as a direct result of a sudden, unintended and unexpected incident after it has left **your** care, custody or control.

8. Financial loss

arising directly or indirectly out of **third party** financial loss, other than **third party** financial loss directly resulting from **bodily injury, personal injury, advertising injury or property damage**.

9. Land or water

arising directly or indirectly from damage by any description to land or water within or below the boundaries of any land or premises presently or at any time previously owned or leased by **you** or otherwise in **your** care, custody or control.

10. Long term hired or leased automobiles

arising directly or indirectly out of any **bodily injury** or **property damage** caused:

- a. whilst driving an automobile which has been on hire from or leased to **you** by a **third party** for more than 30 consecutive days; or
- b. by any trailer attached to an automobile stated in a. above.

11. Marine and aviation

arising directly or indirectly from the ownership, possession or use by **you**, or on **your** behalf, of any:

- a. watercraft, other than any hovercraft, in excess of 10 meters in length; or
- b. aircraft, drone, hovercraft, offshore installation, offshore rig or offshore platform.

12. Property in your care, custody or control

arising directly or indirectly out of **property damage** to **third party** property which is in **your** care, custody or control.

However, this Exclusion will not apply to **INSURING CLAUSE 5 (SECTIONS D, G and H only)**.

In respect of **INSURING CLAUSE 5, SECTION B**:

13. Content advertised prior to the continuity date

arising directly or indirectly out of any advertisement that was first published prior to the **continuity date**.

In respect of **INSURING CLAUSE 5, SECTION F**:

14. Benefit laws

arising directly or indirectly out of **your** failure to comply with the mandatory provisions of any law concerning workers' compensation, unemployment insurance, social security, disability benefits or pension benefits.

15. Employee benefit program advice

arising directly or indirectly from advice given to any person to participate or not to participate in any plan included in **your employee benefit program** or the failure of any investment to perform as represented by **you**.

EXCLUSIONS RELATING TO COMMERCIAL PROPERTY

In respect of **INSURING CLAUSE 6** only:

16. Excluded property

for the costs to repair, replace or rebuild:

- a. works of art and precious metals;
- b. patterns, models, molds, plans and designs;
- c. cash, bank and currency notes, checks, bankers drafts, share and bond certificates; or
- d. land or growing crops.

17. Theft from an unlocked vehicle

arising directly or indirectly out of theft of **contents** from any vehicle, unless the vehicle was locked at the time the theft occurred and there are signs of forced entry.

EXCLUSIONS RELATING TO ALL INSURING CLAUSES

18. Advertising injury

arising directly or indirectly out of **advertising injury**.

However, this Exclusion will not apply to **INSURING CLAUSE 5 (SECTION B only)**.

19. Antitrust

for or arising out of any actual or alleged antitrust violation, restraint of trade, unfair competition, false, deceptive or unfair trade practices, violation of consumer protection laws or false or deceptive advertising other than any covered portion of any **claim** based on **your** alleged unauthorized use of a **third party's** trademark.

20. Asbestos

arising directly or indirectly out of the manufacturing, mining, use, sale, installation, removal, distribution of or exposure to asbestos, materials or products containing asbestos or asbestos fibers or asbestos dust.

However, this Exclusion will not apply to **INSURING CLAUSE 1**.

21. Associated companies

- a. in respect of any **claim** made by any company, firm or partnership in which the **company** has greater than a 15% executive or financial interest, unless the **claim** emanates from an independent **third party**;
- b. in respect of any **claim** made by any company, firm, partnership or individual which has greater than a 15% executive or financial interest in the **company**, unless the **claim** emanates from an independent **third party**;
- c. arising out of or resulting from any of **your** activities as a trustee, partner, officer, director or employee of any employee trust, charitable organization, corporation, company or business other than that of the **company**; or
- d. in respect of any **claim** made by or on behalf of the **company** against a **third party**.

22. Auto

arising directly or indirectly from the ownership, possession or use of any motor vehicle or trailer other than **bodily injury** or **property damage**:

- a. caused by the use of any tool or equipment forming part of or attached to or used in connection with any motor vehicle or trailer;
- b. occurring beyond the limits of any carriageway or thoroughfare and caused by the loading or unloading of any motor vehicle or trailer;
- c. arising out of the use of any motor vehicle or trailer temporarily in **your** custody or control for the purpose of parking; or
- d. occurring beyond the limits of any carriageway or thoroughfare and caused by the use of any unlicensed vehicle, including but not limited to snowmobiles and all-terrain vehicles, in the course of **your** business activities;

provided always that **we** will not make any payment in respect of any legal liability for which compulsory insurance or security is required by legislation or for which a government or other authority has accepted responsibility.

However, this Exclusion will not apply to **INSURING CLAUSE 5 (SECTIONS G and H only)**.

23. Bodily injury

in respect of **INSURING CLAUSES 1 and 2**, arising directly or indirectly out of **bodily injury**.

However, this Exclusion will not apply to:

- a. **INSURING CLAUSE 1 (SECTION A only)** in respect of any **claim** for mental injury or emotional distress as a direct result of defamation, including but not limited to libel, slander, trade libel, product disparagement, injurious falsehood, emotional distress or outrage based on harm to the character or reputation of any person or entity;
- b. **INSURING CLAUSE 1 (SECTION D only)**; and
- c. **INSURING CLAUSES 1 (SECTION E only) and 2 (SECTION A only)** for any **claim** as a direct result of mental injury or emotional distress.

24. Breach of contract

arising directly out of any breach of contract.

However, this Exclusion will not apply to:

- a. **INSURING CLAUSES 1 (SECTIONS A, B and E only) and 2 (SECTION A only)**; or
- b. **INSURING CLAUSE 5 (SECTION B only)** if liability would have attached in the absence of that contract.

25. Catastrophe perils

in respect of **INSURING CLAUSES 6 and 7**, arising:

- a. directly or indirectly out of **earth movement** or **flood**, except for:
 - i. ensuing financial loss or property damage which results directly from fire, explosion, smoke or leakage from fire protective equipment; or
 - ii. ensuing property damage while in transit;
- b. directly out of windstorm or hail, regardless of any other cause or event that contributes concurrently or in any sequence to the financial loss or property damage; or
- c. directly or indirectly out of rain, snow, sand or dust, whether driven by wind or not, if that financial loss or property damage would not have occurred but for the windstorm or hail.

26. Chargebacks

for any credit card company or bank, wholly or partially, reversing or preventing a payment transaction.

However, this Exclusion will not apply to **INSURING CLAUSE 2 (SECTION A only)**.

27. Collection, use or dissemination of private data without consent

arising directly or indirectly out of any actual or alleged failure to obtain consent or agreement from any private individual before using any means (including **tracking and targeted advertising technologies**) to collect, store, process, use, transfer, share, disseminate or allow access to, any of their personal information, including personally identifiable information (PII), personal health information (PHI), biometric information, internet search history and internet browsing habits.

28. Communicable diseases

in respect of **INSURING CLAUSES 5, 6 and 7**, arising directly or indirectly out of, or in any way relating to any actual, threat or fear of any pathogen or disease, including any virus, bacterium, parasite or variation of these, which can be transmitted by any means directly or indirectly from any organism to another organism and can cause, or have the potential to cause:

- a. damage to human health or welfare; or
- b. physical damage or destruction to tangible property, including the deterioration, loss of use or reduction in value or marketability of the tangible property.

29. Core infrastructure failure

in respect of **INSURING CLAUSES 2, 3 and 4**, arising directly or indirectly out of any:

- a. failure, material degradation or termination of any core element of the internet, telecommunications or GPS infrastructure that results in a regional, countrywide or global outage of the internet or telecommunications network, including a failure of

the core DNS root servers, satellite network or the IP addressing system or an individual state or non-state actor disabling all or part of the internet;

- b. failure in the power supply, including where the failure is caused by any surge or spike in voltage, electrical current or transferred energy; or
- c. failure, disruption or reduction in the supply of utilities, including telecommunications, gas and water infrastructure or services.

30. **Cyber events**

arising directly or indirectly out of any **cyber event**.

However, this Exclusion will not apply to **INSURING CLAUSES 2, 3 and 4**.

31. **Defamation**

arising directly or indirectly out of defamation.

However, this Exclusion will not apply to **INSURING CLAUSES 1 and 5 (SECTION B only)**.

32. **Directors and officers liability**

arising out of any personal liability incurred by **your senior executive officers** when they are acting in that capacity or managing **you**, or arising from any statement, representation or information regarding **your** business contained within any accounts, reports or financial statements.

33. **Electronic data**

in respect of **INSURING CLAUSES 6 and 7**, for:

- a. any costs incurred to retrieve, restore, rebuild or recover any electronic data or application, including any costs to reconstitute any electronic data or application;
- b. the actual value of any electronic data or application; or
- c. that part of any **actual loss sustained** arising out of, or attributable to in any way, the loss, the loss of use, reduction in functionality, damage or corruption of any electronic data or application.

34. **Employers' liability**

arising directly or indirectly out of **bodily injury to your employees**.

35. **Employment disputes**

arising directly or indirectly out of any:

- a. employer-employee relations, policies or practices;
- b. actual or alleged refusal to employ any person;
- c. actual or alleged breach by any **employee** of any term or condition of any express or implied contract between them and any past employer of theirs, including breaching

any restrictive covenant, covenant not to compete, non-disparagement agreement, confidentiality agreement or non-solicitation agreement; or

- d. actual or alleged conduct by **you** that defames, libels, slanders, disparages or harasses any past employer of any **employee** or interferes with any past, present or prospective employment or contractual relationship between any **employee** and any past employer of theirs.

36. Equipment breakdown

in respect of **INSURING CLAUSES 6** and **7**, arising directly from the breakdown, explosion or collapse of any electrical or mechanical equipment including air conditioning, refrigeration, boiler, computer and communication equipment.

37. ERISA

based upon the Employment Retirement Income Security Act of 1974, and any amendment thereto, or any rules or regulations promulgated thereunder.

38. Excluded causes

in respect of **INSURING CLAUSES 6** and **7**, arising directly or indirectly out of:

- a. wear and tear, an inherent defect, rot, vermin, infestation, ground heave, subsidence, landslip or any other gradually operating cause;
- b. frost, other than property damage due to water leaking from burst pipes forming part of the permanent internal plumbing provided the **premises** are occupied and in use;
- c. any voluntary parting with, or transfer of, **your premises** or **contents**, if induced to do so by fraud or misrepresentation; or
- d. any unexplained loss or mysterious disappearance.

39. Extended warranty

arising directly or indirectly out of any extended warranty agreement, unless liability would have attached in the absence of that agreement.

40. Insolvency

arising out of or relating directly or indirectly to **your** insolvency or bankruptcy, or the insolvency or bankruptcy of any **third party**. However, **your** insolvency will not relieve **us** of any of **our** legal obligations under this contract of insurance where this insolvency does not give rise to a claim under this Policy.

41. Intellectual property rights

arising directly or indirectly out of any infringement of **intellectual property rights**.

However, this Exclusion will not apply to **INSURING CLAUSES 1 (SECTION E only)** or **5 (SECTION B only)**.

42. Investment advice

arising out of or relating directly or indirectly to investment advice or information or a failure to provide investment advice or information.

43. Known claims and circumstances

arising out of any actual or suspected **cyber event, claim, loss, operator error, system failure** or circumstance which might give rise to a claim under this Policy which a **senior executive officer** was aware of, or ought reasonably to have been aware of, prior to the **continuity date**, including any claim or circumstance notified to any other insurer.

44. Legal action

where any legal action is brought outside the legal action territories stated in the Declarations page, or where an action is brought within those territories to enforce a judgment outside of those territories whether by way of reciprocal agreement or otherwise.

45. Liquidated damages, service credits and penalty clauses

for liquidated damages or service credits, or arising out of penalty clauses unless **you** would have been liable in the absence of any contract stipulating the liquidated damages or service credits or penalty clauses.

46. Loss of economic value

for the reduction in economic or market value (including loss of potential future sales) of any of **your** intellectual property assets.

47. Misleading advertising

arising directly or indirectly from any advertisement, promotion or product description that is actually or alleged to be false or misleading.

However, this Exclusion will not apply to **INSURING CLAUSES 2 (SECTION A only) and 5 (SECTION B only)**.

48. Nuclear

arising directly or indirectly from or contributed to by:

- a. ionizing radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel; or
- b. the radioactive, toxic, explosive or other hazardous properties of any explosive nuclear assembly or nuclear component.

49. Other insurance

for which **you** are entitled to indemnity under any other insurance except for:

- a. any additional sum which is payable over and above the other insurance where that insurance has been declared to **us**; or

- b. any contribution that **we** are obliged to make by law and that contribution will be in proportion to the indemnity available under the policies.

50. **Patent infringement**

arising directly or indirectly out of the actual or alleged infringement or inducement of infringement of any patent, including any application for a patent that has not yet been granted.

51. **Personal injury**

arising directly or indirectly out of **personal injury**.

However, this Exclusion will not apply to **INSURING CLAUSE 5 (SECTION B only)**.

52. **Personal liability**

in respect of any action brought against any past, present or future **employee**, unless arising directly out of work performed for the **company**.

53. **PFAS**

arising directly or indirectly out of the manufacturing, mining, use, sale, installation, removal, distribution of or exposure to any per- and polyfluoroalkyl substances (PFAS) by whatever name designated, including any materials or products containing these substances.

54. **Pollution**

arising directly or indirectly out of **pollution**.

However, this Exclusion will not apply to **INSURING CLAUSES 1 (SECTION F only), 6 and 7**.

55. **Product recall**

for the costs to withdraw, recall, dispose, remove, repair, adjust, alter, recondition, replace, reinstate any **product** or part of a **product**.

56. **Products liability**

arising directly out of any **bodily injury** or **property damage** caused directly by any **product**.

However, this Exclusion will not apply to **INSURING CLAUSE 5 (SECTION C only)**.

57. **Professional services**

arising directly or indirectly from carrying out, or failing to carry out, professional services for a fee or any act, error or omission relating to a professional service.

However, this Exclusion will not apply to **INSURING CLAUSE 1**.

58. **Project-specific insurance**

arising directly or indirectly out of any projects for which **you** have purchased project specific insurance.

59. **Property damage**

in respect of **INSURING CLAUSES 1, 2, 3 and 4**, arising directly or indirectly out of **property damage**.

However, this Exclusion will not apply to **INSURING CLAUSE 1 (SECTION D only)**.

60. **Property perils**

in respect of **INSURING CLAUSES 2, 3 and 4**, arising directly or indirectly out of any fire, earthquake or earth movement of any kind, flood, hail, hurricane, lightning strike, solar storm, tornado, tsunami, volcano, wildfire or windstorm.

61. **Related or associated company confidential business information**

arising directly or indirectly out of any actual or alleged misappropriation, unauthorized use or disclosure by any **employee** of any idea, trade secret or other confidential business information which they were a party to or which they otherwise had possession of prior to being employed by the **company**.

However, this Exclusion will not apply to **INSURING CLAUSE 2 (SECTION A only)** solely in respect of any **claim** arising out of any actual or suspected electronic attack or unauthorized system access by any **third party**.

62. **Retroactive date**

in respect of **INSURING CLAUSES 1 and 5 (SECTION F only)**, arising out of any act, error or omission committed or alleged to have been committed on or before the **retroactive date**, or any related or continuing acts, errors or omissions where the act, error or omission was first committed or alleged to have been first committed on or before the **retroactive date**.

63. **RICO**

for any actual or alleged violations of the Racketeer Influenced and Corrupt Organization Act and any subsequent amendments to this Act.

64. **Securities violations**

for any actual or alleged violation of any laws or regulations relating to the offer or sale of securities.

65. **Seizure of illegal property**

arising from an order by a public or government authority which deprives **you** of the use or value of **your** property or arising from acts of contraband or illegal transportation or illegal trade.

66. **System failure and operator error**

in respect of **INSURING CLAUSES 6 and 7**, arising directly or indirectly out of any **system failure** or **operator error**.

However, this Exclusion will not apply to fire or explosion directly caused by any **system failure** or **operator error**, unless the **system failure** or **operator error** is directly or indirectly caused by any **cyber event**.

67. Terrorism

arising directly or indirectly out of:

- a. any act or threat of force or violence by an individual or group, whether acting alone or on behalf of or in connection with any organization or government, committed for political, religious, ideological or similar purposes including the intention to influence any government or to put the public, or any section of the public, in fear; or
- b. any action taken in controlling, preventing, suppressing or in any way relating to a. above.

However, this Exclusion does not apply to a **cyber event** affecting **your computer systems**.

68. Toxic mold

arising directly or indirectly from the toxic properties of any fungus, mold, mildew or yeast.

However, this Exclusion will not apply to **INSURING CLAUSE 1**.

69. Trade debt

arising directly or indirectly out of any trading losses or trading liabilities incurred by **you**, or any loss of **your** profit arising from the loss of any **client**, account or business.

70. Uninsurable fines

for fines, penalties, civil or criminal sanctions or multiple, punitive or exemplary damages, unless insurable by law.

71. Unjust enrichment

for that part of any **claim** that results in **you** being in a better financial position as a direct result of **your** act, error or omission than **you** would have been if **you** had not committed the act, error or omission.

However, this Exclusion will not apply to any refund of any fee, other than the part of the fee that represents **your** profit or mark-up or liability for taxes.

72. Unsolicited communications

arising directly or indirectly from any actual or alleged violation of:

- a. the CAN-SPAM Act of 2003 or any subsequent amendments to that Act;
- b. the Telephone Consumer Protection Act (TCPA) of 1991 or any subsequent amendments to that Act; or

- c. any other law, regulation or statute relating to unsolicited communication, distribution, sending or transmitting of any communication via telephone or any other electronic or telecommunications device.

However, this Exclusion will not apply to **INSURING CLAUSE 2 (SECTION A only)**.

73. Vacant premises

in respect of **INSURING CLAUSES 6 and 7**, resulting from **premises** left vacant for more than 60 consecutive days.

74. War and cyber war

arising directly or indirectly out of:

- a. **war**; or
- b. **cyber war**.

However, part b. above will not apply to:

- a. **INSURING CLAUSE 2 (SECTION B only)**; and
- b. that part of any claim relating to any **computer systems** which are physically located outside of an **impacted state**.

75. Website content accessibility

arising directly or indirectly out of the actual or alleged violation of any laws, regulations or guidelines relating to the accessibility of **your** website content.

76. Willful or dishonest acts of senior executive officers

arising directly or indirectly out of any willful, criminal, malicious or dishonest act, error or omission by a **senior executive officer** as determined by final adjudication, arbitral tribunal or written admission.

CONDITIONS

1. What you must do in the event of a claim or cyber incident

If any **senior executive officer** becomes aware of any incident which may reasonably be expected to give rise to a claim under this Policy **you** must:

- a. notify the **claims managers** as soon as is reasonably practicable (in respect of cyber incidents, a telephone call to **our cyber incident response line** will constitute notification). However, this notification must be made no later than the end of any applicable extended reporting period;

- b. in respect of **INSURING CLAUSES 3, 4 and 6**, report the theft or incident as soon as is reasonably practicable to the appropriate law enforcement authorities and provide **us** with a copy of this report on **our** request;
- c. provide **us** in a timely manner with any other information and assistance that **we** may request;
- d. in respect of **INSURING CLAUSE 4**, not incur any costs or promise any payment, including any ransom payment, without **our** prior written agreement (which will not be unreasonably withheld); and
- e. not admit liability for or settle or make or promise any payment or incur any **costs and expenses** without **our** prior written agreement (which will not be unreasonably withheld).

In respect of **INSURING CLAUSES 1 and 5 (SECTION F only)**, if **you** notify an incident that **we** agree is reasonably expected to give rise to a **claim**, **we** will accept any **claim** that arises out of the incident as being notified under this Policy.

We require **you** to provide full details of the incident, including but not limited to:

- a. the time, place and nature of the incident;
- b. the manner in which **you** first became aware of this incident;
- c. the reasons why **you** believe that this incident could give rise to a claim under this Policy;
- d. the identity of the potential claimant; and
- e. an indication as to the size of the claim that could result from this incident.

In respect of **INSURING CLAUSES 2, 3 and 4**, if **you** discover a **cyber event** **you** may only incur costs, other than costs incurred to respond to an extortion demand (including any ransom payment), without **our** prior written consent within the first 72 hours following the discovery and any **third party** costs incurred must be with a company forming part of the **approved claims panel providers**. All other costs may only be incurred with the prior written consent of the **claims managers** (which will not be unreasonably withheld).

2. Additional insureds

We will indemnify any **third party** as an additional insured under this Policy, but only in respect of sums which they become legally obliged to pay (including liability for claimants' costs and expenses) as a result of a **claim** arising solely out of an act committed by **you**, provided that:

- a. **you** contracted in writing to indemnify the **third party** for the **claim** prior to it first being made against them; and
- b. had the **claim** been made against **you**, then **you** would be entitled to indemnity under this Policy.

Before **we** indemnify any additional insured they must:

- a. prove to **us** that the **claim** arose solely out of an act committed by **you**; and
- b. fully comply with **CONDITION 1** as if they were **you**.

Where **we** indemnify a **third party** as an additional insured under this Policy, this Policy will be primary and non-contributory to the **third party's** own insurance, but only if **you** and the **third party** have entered into a contract that contains a provision requiring this.

Where a **third party** is treated as an additional insured as a result of this Condition, any **claim** made by that **third party** against **you** will be treated by **us** as if they were a **third party** and not as an insured.

3. Agreement to pay claims (duty to defend)

We have the right and duty to take control of and conduct in **your** name the investigation, settlement or defense of any **claim**. **We** will not have any duty to pay **costs and expenses** for any part of a **claim** that is not covered by this Policy.

You may ask the **claims managers** to consider appointing **your** own lawyer to defend the **claim** on **your** behalf and the **claims managers** may grant **your** request if they consider **your** lawyer is suitably qualified by experience, taking into account the subject matter of the **claim**, and the cost to provide a defense.

We will endeavor to settle any **claim** through negotiation, mediation or some other form of alternative dispute resolution and will pay on **your** behalf the amount **we** agree with the claimant. If **we** cannot settle using these means, **we** will pay the amount which **you** are found liable to pay either in court or through arbitration proceedings, subject to the **limit of liability**.

We will not settle any **claim** without **your** consent. If **you** refuse to provide **your** consent to a settlement recommended by **us** and elect to continue legal proceedings in connection with the **claim**, any further **costs and expenses** incurred will be paid by **you**. As a consequence of **your** refusal, **our** liability for the **claim** will not be more than the amount for which the **claim** could have been settled had **you** consented, plus any **costs and expenses** incurred prior to the date of **your** refusal.

4. Application warranty

You agree that all statements made by **you** in the application form, including any renewal application form, and any supplemental materials **you** have supplied in support of the application for insurance, are **your** agreements and representations to **us** and the Policy is issued in reliance upon that information. The misrepresentation or non-disclosure of any matter by **you** or **your** agent will render this Policy null and void and relieve **us** from all liability under this Policy.

5. Calculation of business interruption losses

Following an interruption to **your** business activities covered under **INSURING CLAUSES 2 (SECTIONS F or G only)** or **7**, **you** must provide **us** with **your** calculation of the loss including:

- a. how the loss has been calculated and what assumptions have been made; and
- b. supporting documents including account statements, sales projections and invoices.

6. Cancellation

This Policy may be canceled with 30 days written notice by either **you** or **us**.

If **you** give **us** notice of cancellation, the return **premium** will be in proportion to the number of days that the Policy is in effect. However, if **you** have made a claim under this Policy there will be no return **premium**.

If **we** give **you** notice of cancellation, the return **premium** will be in proportion to the number of days that the Policy is in effect.

We also reserve the right of cancellation in the event that any amount due to **us** by **you** remains unpaid more than 60 days beyond the **inception date**. If **we** exercise this right of cancellation it will take effect from 14 days after the date the written notice of cancellation is issued.

The Policy Administration Fee will be deemed fully earned upon inception of the Policy.

7. Commercial property amount insured reinstatement

In respect of **INSURING CLAUSE 6**, in the event that the amount insured is partially reduced or totally exhausted due to the payment of a claim as a result of damage to **your premises** or **contents**, the amount insured will be automatically reinstated, provided:

- a. **we** do not give **you** written notice within 30 days of the notification of damage stating otherwise;
- b. where the amount of loss, net of the applicable **deductible**, exceeds \$20,000 **you** pay an additional **premium** as advised by **us**; and
- c. **you** agree to any other risk management conditions requested by **us**.

8. Continuous cover

In respect of **INSURING CLAUSES 1 and 5 (SECTION F only)**, if during the period of a previous renewal of this Policy **you** neglected, through error or oversight only, to report to **us** an incident that might give rise to a **claim**, then provided **you** have maintained uninterrupted insurance of the same type with **us** since expiry of the previous renewal of this Policy, **we** will permit the incident to be reported to **us** under this Policy and **we** will indemnify **you** under this Policy in respect of any **claim** that arises out of the incident, provided:

- a. the indemnity will be subject to the applicable limit of liability of the previous renewal of this Policy under which the incident should have been reported to **us** or the applicable **limit of liability**, whichever is the lower;
- b. **we** may reduce the indemnity entitlement by the monetary equivalent of any prejudice which has been suffered as a result of the delayed notification; and
- c. the indemnity will be subject to all other terms and conditions of this Policy.

We require **you** to provide full details of the incident, including but not limited to:

- a. the time, place and nature of the incident;
- b. the manner in which **you** first became aware of this incident;
- c. reasons why **you** believe that this incident could give rise to a **claim**;
- d. the identity of the potential claimant; and
- e. an indication as to the size of the **claim** that could result from this incident.

For the avoidance of doubt, this Condition only applies to incidents that might give rise to a **claim**.

9. Cross liability and severability

In respect of **INSURING CLAUSE 5** only, where there is more than one entity insured under this Policy, and subject to the **limit of liability**, any **claim** made by one insured entity against another insured entity will be treated as if they are a **third party** and knowledge possessed by one insured entity will not be imputed to any other insured entity.

10. Dispute resolution

All disputes or differences between **you** and **us** will be referred to mediation or arbitration and will take place in the country of registration of the company named as the insured in the Declarations page.

In respect of any arbitration proceeding **we** will follow the applicable rules of the arbitration association in the country where the company stated as the insured in the Declarations page is registered, the rules of which are deemed incorporated into this Policy by reference to this Condition. Unless the applicable arbitration association rules state otherwise, a single arbitrator will be appointed who will be mutually agreed between **you** and **us**. If **you** and **we** cannot agree on a suitable appointment then **we** will refer the appointment to the applicable arbitration association.

Each party will bear its own fees and costs in connection with any mediation or arbitration proceeding but the fees and expenses of the arbitrator will be shared equally between **you** and **us** unless the arbitration award provides otherwise.

Nothing in this Condition is intended to remove **your** rights under **CONDITION 25**. However, if a determination is made in any mediation or arbitration proceeding, **CONDITION 25** is intended only as an aid to enforce this determination.

11. Due diligence

In respect of **INSURING CLAUSE 6**, **you** will at **your** own expense take all practicable steps during the **period of the policy** to:

- a. prevent loss of or damage to **your premises** or **contents**, including taking practicable steps to reduce the risk of theft of **your contents** whilst in any vehicle by keeping them out of sight;
- b. maintain **your premises** or **contents** in a proper state of maintenance and repair; and
- c. take all reasonable steps to observe and comply with any applicable laws, obligations or requirements.

12. Establishing loss of contents

If **you** make a claim under this Policy for loss of **contents**, **you** must reasonably establish how and when the incident took place.

13. Extended reporting period

An extended reporting period of 60 days following the **expiry date** will be automatically granted at no additional premium. This extended reporting period will cover, subject to all other terms, conditions and exclusions of this Policy:

- a. in respect of **INSURING CLAUSES 1 and 5 (SECTION F only)**, any **claim** first made against **you** during the **period of the policy** and reported to **us** during this extended reporting period;
- b. in respect of **INSURING CLAUSES 2, 3 and 4**, any **cyber event, loss, operator error or system failure** first discovered by **you** during the **period of the policy** and reported to **us** during this extended reporting period; and
- c. any circumstance that a **senior executive officer** became aware of during the **period of the policy** and reports to **us** during this extended reporting period.

No claim will be accepted by **us** in this 60 day extended reporting period if **you** are entitled to indemnity under any other insurance, or would be entitled to indemnity under such insurance if its limit of liability was not exhausted.

14. Optional extended reporting period

If **we** or **you** decline to renew or cancel this Policy then **you** will have the right to have issued an endorsement providing an optional extended reporting period for the duration stated in the Declarations page which will be effective from the cancellation or non-renewal date.

This optional extended reporting period will cover, subject to all other terms, conditions and exclusions of this Policy:

- a. in respect of **INSURING CLAUSES 1 and 5 (SECTION F only)**, any **claim** first made against **you** and reported to **us** during this optional extended reporting period,

provided that the **claim** arises out of any act, error or omission committed prior to the date of cancellation or non-renewal; and

- b. in respect of **INSURING CLAUSES 2, 3 and 4**, any **cyber event, loss, operator error or system failure** first discovered by **you** during this optional extended reporting period, provided that the **cyber event, loss, operator error or system failure** first occurred during the **period of the policy**.

If **you** would like to purchase the optional extended reporting period **you** must notify **us** and pay **us** the optional extended reporting period premium stated in the Declarations page within 30 days of cancellation or non-renewal.

The right to the optional extended reporting period will not be available to **you** where cancellation or non-renewal by **us** is due to non-payment of the **premium** or **your** failure to pay any amounts in excess of the applicable **limit of liability** or within the amount of the applicable **deductible** as is required by this Policy in the payment of claims.

At the renewal of this Policy, **our** quotation of different **premium, deductible**, limits of liability or changes in policy language will not constitute non-renewal by **us**.

15. Fraudulent claims

If it is determined by final adjudication, arbitral tribunal or written admission by **you**, that **you** notified **us** of any claim knowing it to be false or fraudulent in any way, **we** will have no responsibility to pay that claim, **we** may recover from **you** any sums paid in respect of that claim and **we** reserve the right to terminate this Policy from the date of the fraudulent act. If **we** exercise this right, **we** will not be liable to return any **premium** to **you**. However, this will not affect any non-fraudulent claim under this Policy which has been previously notified to **us**.

16. Maintenance of employee automobile liability insurance

It is a condition precedent to indemnity under **INSURING CLAUSE 5 (SECTIONS G and H only)** that all **employees** who operate an automobile in the course of **your** business activities will maintain in full force and effect for the **period of the policy** primary automobile liability insurance in an amount equal to, or greater than, the minimum primary automobile liability limits required in the state of registration of the automobile. If **you** make a **claim** under **INSURING CLAUSE 5 (SECTIONS G and H only)** and the **employee** has failed to meet these requirements then this Policy will only respond to provide excess coverage as though the requirements had been met, whereby **you** agree to pay all sums within and up to the required minimum limit.

17. Mergers and acquisitions

If **you** acquire an entity during the **period of the policy** whose annual revenue does not exceed 20% of the **company's** annual revenue, as stated in its most recent annual financial statements, cover is automatically extended under this Policy to include the entity as a **subsidiary**.

If **you** acquire an entity during the **period of the policy** whose annual revenue exceeds 20% of the **company's** annual revenue, as stated in its most recent annual financial statements, cover is automatically extended under this Policy to include the entity as a **subsidiary** for 45 days.

We will consider providing cover for the acquired entity after the period of 45 days if:

- a. **you** give **us** full details of the entity within 45 days of its acquisition; and
- b. **you** accept any amendment to the terms and conditions of this Policy and agree to pay any additional **premium** required by **us**.

In the event **you** do not comply with a. and b. above, cover will automatically terminate for the entity 45 days after the date of its acquisition.

Cover for any acquired entity is only provided under this Policy for any act, error or omission committed or alleged to have been committed on or after the date of its acquisition.

No cover will be automatically provided under this Policy for any acquired entity:

- a. whose business activities are materially different from **your** business activities;
- b. that has been the subject of any lawsuit, disciplinary action or regulatory investigation in the 3 year period prior to its acquisition; or
- c. that has experienced a **cyber event** in the 3 years period prior to its acquisition, if **you** have purchased **INSURING CLAUSES 2, 3 or 4** and the **cyber event** cost more than the highest **deductible** of **INSURING CLAUSES 2, 3 or 4**.

No cover will be provided under this Policy for premises or **contents** owned by any acquired entity prior to the date of acquisition.

If during the **period of the policy** **you** consolidate, merge with or are acquired by another entity then cover under this Policy will continue to apply but only in respect of any act, error or omission committed or alleged to have been committed prior to the effective date of the consolidation, merger or acquisition.

18. Our rights of recovery

If **we** make any payment under this Policy and **you** have any right of recovery against a **third party** in respect of this payment, then **we** will maintain this right of recovery. **You** will do whatever is reasonably necessary to secure this right and will not do anything after the event which gave rise to the claim to prejudice this right.

We will not exercise any rights of recovery against any **employee**, unless this is in respect of any fraudulent or dishonest acts or omissions as proven by final adjudication, arbitral tribunal or written admission by the **employee**.

Any recoveries will be applied as follows:

- a. towards any recovery expenses incurred by **us**;
- b. then to **us** up to the amount of **our** payment under this Policy, including **costs and expenses**;
- c. then to **you** as recovery of **your deductible**.

19. Prior subsidiaries

Should an entity cease to be a **subsidiary** after the **inception date**, cover in respect of the entity will continue as if it was still a **subsidiary** during the **period of the policy**, but only in respect of an act, error, omission or event occurring prior to the date that it ceased to be a **subsidiary**.

20. Proceeds of crime recovery

Notwithstanding **CONDITION 18**, if **we** have reimbursed **you** for any claim under **INSURING CLAUSES 3 or 4** that subsequently relates to any proceeds of crime that have been forfeited to or seized by any law enforcement authority, or confiscated as part of any legal proceeding, **you** must:

- a. notify **us** as soon as practicable in the event **you** become aware of the forfeiture, seizure or confiscation;
- b. provide **us** with any assistance **we** may request in the recovery of these proceeds of crime, including **your** automatic consent for **us** to initiate, progress secure and finalize any investigation in the recovery; and
- c. reimburse to **us** upon **our** request that part of any payment **we** have made which falls within the amount of any proceeds of crime that **you** have recovered.

21. Process for paying privacy breach notification costs

Any **privacy breach** notification transmitted by **you** or on **your** behalf must be done with **our** prior written consent. **We** will ensure that notification is compliant with any legal or regulatory requirements and contractual obligations. No offer must be made for financial incentives, gifts, coupons, credits or services unless with **our** prior written consent which will only be provided if the offer is commensurate with the risk of harm.

We will not be liable for any portion of the costs **you** incur under **INSURING CLAUSE 2 (SECTION C only)** that exceed the costs that **you** would have incurred had **you** gained **our** prior written consent. In the absence of **our** prior written consent **we** will only be liable to pay **you** the equivalent cost of a notification made using the most cost effective means permissible under the governing law.

22. Sanctions suspension

It is a condition under this Policy that the provision of cover, the payment of any claim and the provision of any benefit will be suspended, to the extent that the provision of the cover, payment of the claim or provision of the benefit would expose **us** to any sanction, prohibition or restriction under the United Nations resolutions or the trade or economic sanctions, laws or

regulations of Australia, Canada, the European Union, United Kingdom or United States of America. The suspension will continue until such time **we** would no longer be exposed to the sanction, prohibition or restriction.

23. Supply chain interruption events

In respect of **INSURING CLAUSE 2 (SECTION G only)**, it is a condition precedent to liability under this Policy that **you** submit to **us** a written report from the **supply chain partner** confirming the root cause and length of the outage.

24. Waiver of subrogation

Notwithstanding **CONDITION 18**, **we** agree to waive **our** rights of recovery against any **third party** if, prior to the claim or incident which **you** reasonably expected to give rise to a claim, **you** entered into a contract that contains a provision requiring **you** to do this.

25. Choice of law, jurisdiction and service of suit

In the event of a dispute between **you** and **us** regarding this Policy, the dispute will be governed by the laws of the State of the United States of America shown as the choice of law stated in the Declarations page. **We** agree, at **your** request, to submit to the jurisdiction of a court of competent jurisdiction within the United States of America.

Nothing in this Condition constitutes or should be understood to constitute a waiver of **our** rights to commence an action in any court of competent jurisdiction in the United States of America, to move an action to a United States District Court, or to seek a transfer of a case to another court as permitted by the laws of the United States of America or the laws of any State of the United States of America.

It is further agreed that service of process in such suit may be made upon the representative stated in the Declarations page and that in any suit instituted against **us**, **we** will abide by the final decision of such court or of any appellate court in the event of an appeal. The representative stated in the Declarations page is authorized and directed to accept service of process on **our** behalf in any such suit and, at **your** request, to give a written undertaking to **you** that they will enter a general appearance on **our** behalf in the event such suit is instituted.

Additionally, in accordance with the statute of any state, territory or district of the United States which makes such a provision, **we** hereby designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office, as **our** true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by **you** arising out of this Policy. The representative stated in the Declarations page is hereby designated as the person to whom the above mentioned officer is authorized to mail such process or a copy thereof.



Architects & engineers contract review service

To access the contract review service, please follow the below steps:

1

Email

Please email CFCcontractreview@wilsonelser.com

2

Information to include

Please include your name, policy number, jurisdiction, and the contract to be reviewed

3

Any other questions?

If you have any questions regarding CFC and Wilson Elser's contract review service, please email us at professions@cfc.com

Key benefits of the review service

- No additional premium to be charged for the service
- Reveals possible caveats, ambiguities or unusual stipulations in the contract
- Confirms that the contract complies with laws and regulations
- Highlights the insurance requirements and risk management opportunities
- Wilson Elser and CFC will work together to return all contract reviews in one week
- Three reviews per policy year
- Two hour cap for the review
- For risk management purposes only - Wilson Elser are not the insured's lawyer

This document is provided as a matter of information only, please review the policy wording for full details

SUMMARY OF AMENDMENTS

DECLARATIONS PAGE

INSURING CLAUSE 1: PROFESSIONAL LIABILITY

SECTION I: PAYMENT OF WITHHELD FEES The cost basis on this coverage has been clarified and does not include **costs and expenses**.

PREAMBLE

New defined terms of **operator error** and **system failure** have replaced **technology error** to remove duplication.

INSURING CLAUSES

INSURING CLAUSE 2: CYBER AND PRIVACY

SECTION D: SYSTEM DAMAGE RECTIFICATION COSTS Previously SECTION E, this Section has been updated to include recovery of applications.

SECTION E: HARDWARE REPLACEMENT COSTS This is a new cover to reimburse **you** for the replacement of hardware or equipment rendered unusable following a **cyber event**.

SECTION F: SYSTEM BUSINESS INTERRUPTION AND REPUTATIONAL HARM This Section has been amended to include **system failure** and **operator error** as triggers, as well as new definition of **time franchise**.

SECTION G: DEPENDENT BUSINESS INTERRUPTION This is a new cover to reimburse **you** for **your actual sustained loss** following a **cyber event**, **system failure** or **operator error** rendering the **computer systems** of a **supply chain partner** unusable.

SECTION H: CLAIMS PREPERATION COSTS Previously SECTION G.

REMOVED SECTIONS: EXTORTION (now included as a standalone INSURING CLAUSE).

INSURING CLAUSE 3: CYBER CRIME

SECTION A: FUNDS TRANSFER FRAUD This Section has been amended to clarify that it applies to the theft of the **company's** assets.

SECTION E: UNAUTHORISED USE OF COMPUTER RESOURCES This is a new cover to reimburse you for loss as a result of **cryptojacking** or **botnetting**.

INSURING CLAUSE 4: CYBER EXTORTION

This cover is now included as a standalone INSURING CLAUSE. This cover has been amended to reflect intent that **we** will pay on behalf of the **company** any ransom in response to an extortion demand made against **you**, as well as the reasonable and necessary costs incurred to respond to the extortion demand.

INSURING CLAUSE 5: COMMERCIAL GENERAL LIABILITY

Previously INSURING CLAUSE 4.

INSURING CLAUSE 6: COMMERCIAL PROPERTY

Previously INSURING CLAUSE 5.

INSURING CLAUSE 7: BUSINESS INTERRUPTION

Previously INSURING CLAUSE 6.

INSURING CLAUSE 8: LOSS MITIGATION

Previously INSURING CLAUSE 7.

INSURING CLAUSE 9: COURT ATTENDANCE COSTS

Previously INSURING CLAUSE 8.

INSURING CLAUSE 10: REPUTATION AND BRAND PROTECTION

Previously INSURING CLAUSE 9.

HOW MUCH WE WILL PAY

Updated to reflect structural changes to the wording.

YOUR DEDUCTIBLE

Updated to use the new defined term of **time franchise**.

DEFINITIONS

New Definitions

The following Definitions have been added:

Botnetting
Cryptojacking
Operator error
Supply chain partner
System failure
Time franchise
Tracking and targeted advertising technologies

Amended Definitions

The following Definitions have been amended:

Claim
Updated to reflect structural changes and correct the reference for **regulatory investigation** section to SECTION C of INSURING CLAUSE 2.

Cyber event
Updated to reflect structural changes and new cover and include reference to AI.

Cyber incident response line
Updated from "hotline" to "line".

Indemnity period
Updated to specify which parts of INSURING CLAUSE 2 the definition applies to and removes reference to INSURING CLAUSE 3.

Deleted Definitions

The following Definitions have been deleted:

Cyber incident response team (replaced with **claims manager**)
Technology error
Waiting period (replaced with **time franchise**)

EXCLUSIONS

New Exclusions

The following Exclusions have been added:

System Failure and operator error (replacing **Technology error**)

Amended Exclusions

The following Exclusions have been amended:

Antitrust
Updated to remove reference to writeback for specific cover under INSURING CLAUSES 2 and 3.

Collection, use or dissemination of private data without consent (previously **Collection of private data without consent**)
Amended to also exclude tracking technology and data use and dissemination.

Core infrastructure failure (previously **Core internet infrastructure failure**)
Renamed to reflect scope and amended to incorporate infrastructure failures beyond the internet, such as power and utilities.

Known claims and circumstances
Updated to reflect new coverage triggers of **system failure** and **operator error**.

Exclusions updated to reflect structural changes:

Advertising injury
Auto
Breach of contract
Catastrophe perils
Communicable disease
Cyber events
Defamation
Electronic data
Equipment breakdown
Excluded causes

Intellectual property rights
Misleading advertising
Personal injury
Pollution
Products liability
Property damage
Property in your care custody or control
Property perils
Retroactive date
Vacant premises

Deleted Exclusions

The following Exclusions have been deleted:

Business interruption liability
Domain name suspension or revocation
Payment card industry related fines, penalties and assessments
Power and utility failure (incorporated into **Core infrastructure failure** Exclusion)
Regular staff hours costs
Technology errors

CONDITIONS

New Conditions

The following Conditions have been added:

Proceeds of crime recovery
Supply chain interruption events

Amended Conditions

The following Conditions have been amended:

What you must do if an incident takes place

In addition to structural changes and reference to **claims manager**, this Condition has been updated as follows:

- New part c. added to ensure information and assistance is provided to **us** in a timely manner.
- New part d. added, requiring **you** not to incur any costs or promise to make any payment without **our** prior written consent (which will not be unreasonably withheld) in respect of INSURING CLAUSE 4.
- Clarification that costs to respond to an extortion demand are not included in the costs that can be incurred without **our** consent in the first 72 hours.

Extended reporting period

Amended to reflect structural changes and reference **system failure** and **operator error**.

Optional extended reporting period

Amended to clarify how the optional extended reporting period applies to different coverage parts, as well as reference **system failure** and **operator error**.

SURPLUS LINES TAX FILING NOTICE

POLICY NUMBER: PSO0140671916
THE INSURED: Florida Agricultural Engineering Inc
INCEPTION DATE: 29 Jan 2026

SURPLUS LINES BROKER

RT Specialty, LLC
Jeff Aumick
License number A009843
150 S US Highway 1, Suite 3
Jupiter
FL 33477

INFORMATION FOR BROKERS

For Surplus Lines Taxes filing purposes, stated below is the premium allocated to the insuring clauses purchased and the mix of insurers providing the security.

CONTRACT NUMBERS AND CORRESPONDING LIST OF INSURERS

Coverage: Professional indemnity E&O
Premium: USD2080.00
UMR: B087525C9N5051, of which the insurers are:

Lloyd's syndicates:

One Lime Street, London EC3M 7HA, UK

CFC 1988	28.000000%	USD582.40
CNP 4444	12.500000%	USD260.00
CGM 2488	8.250000%	USD171.60
ASP 4711	7.000000%	USD145.60
WSM 1200	6.500000%	USD135.20
QPS 5555	5.250000%	USD109.20
MKL 3000	3.000000%	USD62.40
AFB 5623	2.750000%	USD57.20
EVE 2786	2.750000%	USD57.20
AUL 1274	2.000000%	USD41.60
CBN 4747	2.000000%	USD41.60
AXL 2003	1.500000%	USD31.20
AML 2001	1.500000%	USD31.20
CSL 1084	1.250000%	USD26.00
AES 1225	0.750000%	USD15.60

Other insurers:

Zurich Insurance Company Ltd	15.000000%	USD312.00	70 Mark Lane, London, EC3R 7NQ, GB
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Coverage:	commercial general liability
Premium:	USD715.00
UMR:	B087525C9N5053, of which the insurers are:

Lloyd's syndicates:

One Lime Street, London EC3M 7HA, UK

CFC 1988	27.000000%	USD193.05
CGM 2488	8.000000%	USD57.20
QPS 5555	7.500000%	USD53.62
WSM 1200	7.500000%	USD53.62
ASP 4711	7.000000%	USD50.05
EVE 2786	6.000000%	USD42.90
AXL 2003	5.000000%	USD35.75
CNP 4444	4.000000%	USD28.60
MKL 3000	2.500000%	USD17.88
CSL 1084	3.500000%	USD25.02
CBN 4747	2.000000%	USD14.30
AML 2001	2.000000%	USD14.30
AES 1225	1.500000%	USD10.73

Other insurers:

Zurich Insurance Company Ltd	16.500000%	USD117.98	70 Mark Lane, London, EC3R 7NQ, GB
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